

**CHAPTER c.**

An Act to confer additional powers upon the Midland Railway Company for the construction of works and upon that Company the Midland and Great Northern Railways Joint Committee and the Cheshire Lines Committee for the acquisition of lands and for other purposes. A.D. 1911.
[18th August 1911.]

WHEREAS it is expedient that the Midland Railway Company (in this Act called "the Company") should be empowered to construct and maintain the railways and other works and to exercise the other powers in this Act mentioned and also to acquire retain hold and use lands for the purposes of this Act and for extending their station siding warehouse coal-wharf depôt mineral goods and other accommodation and for other purposes connected with their undertaking :

And whereas it is expedient that the Midland and Great Northern Railways Joint Committee should be empowered to acquire the lands in this Act mentioned in that behalf :

And whereas it is expedient that the Cheshire Lines Committee should be empowered to acquire the lands in this Act mentioned in that behalf and to divert the public footpath in the borough of Widnes in this Act mentioned :

And whereas plans and sections showing the lines and levels of the railways and other works by this Act authorised and plans showing the lands required or which may be taken for the purposes or under the powers of this Act and also books of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the clerks of the peace for the several counties and riding within which the said

A.D. 1911. railways and other works will be made or the said lands are situate and those plans sections and books of reference are in this Act referred to as the deposited plans sections and books of reference respectively :

And whereas it is expedient that the time limited by the Cheshire Lines Act 1903 as extended by the Cheshire Lines Act 1908 for the compulsory purchase of lands for the purposes of and for the completion of the railways authorised by the said Act of 1903 should be extended as provided by this Act :

And whereas the powers conferred upon the Rotherham Maltby and Laughton Railway Company by the Rotherham Maltby and Laughton Railway Act 1905 are now vested in the Great Central and Midland Joint Committee and it is expedient that the time limited by the said Act of 1905 as extended by the Great Central Railway (Various Powers) Act 1909 for the compulsory purchase of lands for the purposes of and for the completion of Railways Nos. 1A 1B and 1C authorised by the said Act of 1905 should be extended as provided by this Act :

And whereas it is expedient that the Company should be empowered to abandon the construction of the railways and works in this Act mentioned in that behalf and authorised by the Midland Railway (West Riding Lines) Act 1898 and the Midland Railway Act 1907 respectively :

And whereas it is expedient that further powers should be conferred upon the Company and upon any joint committee incorporated by Act of Parliament of the Company and any other company or companies or any joint committee so incorporated on which the Company is represented (in this Act called "the joint committees") with respect to the lease or other disposal of lands acquired by the Company or any such joint committee respectively which are not or eventually may not be required for the purposes for which they may have been so acquired :

And whereas it is expedient that the agreements respectively set forth in the First Fourth Fifth and Sixth Schedules to this Act should be confirmed :

And whereas it is expedient that some of the powers and provisions of existing Acts relating to the Company should be amended and that further powers should be conferred upon the Company as provided by this Act :

And whereas it is expedient that the Company and the Midland and Great Northern Railways Joint Committee the Cheshire Lines Committee the Great Central Railway Company and the Great Northern Railway Company should respectively be empowered to apply their funds to the purposes of this Act in which they are respectively interested: A.D. 1911.

And whereas the objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited for all purposes as the Midland Railway Act 1911. Short title.

2. The following Acts and parts of Acts are (except where expressly varied by this Act) incorporated with and form part of this Act (that is to say):— Incorporation of general Acts.

The Lands Clauses Acts;

The Railways Clauses Consolidation Act 1845;

Part I. (relating to the construction of a railway) and Part II. (relating to extension of time) of the Railways Clauses Act 1863.

3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings And— Interpretation.

“The corporation” means the lord mayor aldermen and citizens of the city of Bradford;

“The Lancashire Company” means the Lancashire and Yorkshire Railway Company;

“The city” means the city of Bradford;

“The railways” means the railways by this Act authorised.

4. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and Protection of gas and water mains of local authorities.

A.D. 1911. apparatus of any local authority and shall be construed as if "local authority" were mentioned in those sections in addition to "company" or "society" Provided that any penalties recovered under section 23 shall be appropriated to that fund of the local authority to which their revenues in respect of water or gas (as the case may be) are appropriated.

Power to
Company
to make
railways at
Swansea.

5. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the railways hereinafter described with all proper approaches stations sidings works and conveniences connected therewith and may enter upon take and use such of the lands delineated on those plans and described in the deposited books of reference relating thereto as may be required for those purposes or for providing accommodation for persons belonging to the working class who may be displaced in executing the powers of this Act or any other Act relating to the Company.

The railways herein-before referred to and authorised by this Act are—

(Swansea
King's Dock
Lines.)

Two railways situate wholly in the county of Glamorgan to be called the Swansea King's Dock Lines—

Railway No. 1 (four miles three furlongs in length) commencing in the parish of Llansamlet in the rural district of Swansea by a junction with the Company's Swansea Vale Railway from Swansea to Ynisiygeinon Junction and terminating in the said parish and rural district by a junction with the southernmost siding of the storage sidings constructed by the Swansea Harbour Trustees on or adjoining the Crymlyn Burrows:

Railway No. 2 (two furlongs three chains in length) commencing in the said parish of Llansamlet in the rural district of Swansea by a junction with Railway No. 1 and terminating in the parish of Coed-ffranc in the rural district of Neath on the said Crymlyn Burrows at a point two chains or thereabouts south-east of the eastern extremity of the before-mentioned storage sidings of the Swansea Harbour Trustees.

For pro-
tection of
Swansea.

6. For the protection of the Swansea Gas Light Company (in this section called "the gas company") the following provisions

shall unless otherwise agreed apply and have effect (that is to say) :--

A.D. 1911.
Gas Light
Company.

(1) Before commencing any works by this Act authorised in or under any street in or under which any mains pipes syphons tubes or other works (herein-after called "apparatus") of the gas company are situate the Company shall deliver to the gas company plans and sections and a description of the works so proposed to be executed describing the proposed manner of executing the same and (except in the case of emergency) a notice stating the date when it is proposed to commence such works and such plans sections description and notice shall be delivered to the gas company at least twenty-eight days before the commencement of any such works:

(2) If it should appear to the gas company that such works will interfere with or endanger any of their apparatus or impede the supply of gas the gas company may give notice to the Company to lower or otherwise alter the position of such apparatus or to substitute temporarily or otherwise other apparatus in such manner as may be considered necessary and to lay or place under any apparatus cement concrete or other like substances and any difference as to the necessity of such lowering alteration support substitution laying or placing cement concrete or other like substance shall be settled as herein-after provided and all such works shall be done and executed by and at the expense of the Company but to the reasonable satisfaction and under the superintendence of the engineer of the gas company and the reasonable costs charges and expenses of such superintendence shall be paid by the Company Provided that if the gas company by notice in writing to the Company within seven days after the receipt by them of notice of the intended commencement by the Company of any such works so require the gas company may by their own engineer or workmen do and execute such works so far as they interfere with or affect the apparatus of the gas company and the Company shall on completion thereof pay to the gas company the reasonable expenses incurred by them in the execution thereof:

A.D. 1911.
—

- (3) In the event of such plans sections and description so delivered to the gas company as aforesaid not being objected to within fourteen days they shall be deemed to have been approved by the gas company :
- (4) The gas company may if they deem fit employ watchmen or inspectors to watch and inspect the works whereby any apparatus belonging to them will be interfered with or affected during their construction repair or renewal and the reasonable wages of such watchmen or inspectors shall be borne by the Company and be paid by them to the gas company :
- (5) If the Company for any of the purposes of this Act take or render useless to the gas company any apparatus belonging to the gas company in any streets highways roads footpaths lanes courts passages and other places within the limits shown on the deposited plans which are now used by the gas company for supplying gas to such streets highways roads footpaths lanes courts passages and other places they shall pay to the gas company the value of such apparatus and the same shall thereupon become the property of the Company and the Company shall also pay to the gas company their reasonable charges of removing or altering any of their apparatus in immediate communication therewith which the works of the Company shall render useless or which shall be required to be altered :
- (6) The Company shall be responsible for and make good to the gas company all costs losses damages penalties and expenses which may be incurred by or occasioned to the gas company or to any of their apparatus property works and conveniences (including any loss of gas or interruption in the supply of gas by the gas company and all injury or loss by explosion or otherwise) through by reason of or consequent on the execution user or failure of any of the intended works or through by reason of or consequent on any act or omission of the Company or of any of their contractors agents workmen or servants or of any of the persons in their employ or in the employ of their contractors or others or by reason of or

consequent on any subsidence caused by any works authorised by this Act to be done by the Company and the Company will effectually indemnify and hold harmless the gas company from all penalties claims and demands upon or against them by reason of such execution or failure or of any such act or omission as aforesaid. Provided that the Company shall not be liable for any such costs losses damages or expenses as aforesaid if the same shall be occasioned by anything done or not done in compliance and accordance with any requirement of the gas company:

A.D. 1911.

- (7) If any difference shall arise with respect to any matter under this section between the Company and the gas company or their respective engineers or concerning any plans sections or description to be delivered to the gas company under the foregoing provisions of this section the matter in difference shall be referred to and settled by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto in accordance with the provisions of the Arbitration Act 1889.

7. For the protection of the Swansea Rural District Council (herein-after in this section called "the council") the following provisions shall notwithstanding anything in this Act contained or shown on the deposited plans and sections have effect unless otherwise agreed in writing between the Company and the council:—

For protection of Swansea Rural District Council.

- (1) The bridge carrying the road known as Crymlyn Road and numbered 94 on the deposited plans in the parish of Llansamlet over Railway No. 1 (Swansea King's Dock Lines) shall have a clear width between the parapet walls of such bridge of not less than twenty-seven feet six inches:
- (2) The diversion of the footpath crossing the enclosure numbered 8 on the deposited plans for the parish of Llansamlet shall be carried out in a line to be reasonably approved by the council and to their reasonable satisfaction and the footpath shall be constructed of a width of not less than six feet:

A.D. 1911.

(3) The public footpath situated at one mile eight chains on the deposited plans shall be carried over the railway by means of a footbridge not less than six feet in width :

(4) The Company shall not interfere with the public footpath crossing the field numbered 110 on the said deposited plans for the parish of Llansamlet :

(5) If any difference shall arise between the Company and the council under or in relation to the provisions of this section it shall be referred to an arbitrator appointed failing agreement by the President of the Institution of Civil Engineers and the Arbitration Act 1889 shall apply to such arbitration.

For protec-
tion of Sam-
let Colliery
Limited

8.—(1) The Samlet Colliery Limited their successors and assigns (in this section called “the colliery company”) shall be entitled at any time at their own expense to make and maintain a bridge over the Railway No. 1 (Swansea King’s Dock Lines) by this Act authorised at a point to be reasonably approved by the chief engineer of the Company for the purpose of carrying a railway or tramway across the said Railway No. 1 so as to provide communication between the Samlet Collieries and the railways of the Great Western Railway Company authorised in the year one thousand nine hundred and four and now in course of construction and the Company shall afford to the colliery company all reasonable facilities for the purpose of making and maintaining the said bridge and making maintaining and working a railway or tramway thereover as aforesaid.

(2) The said bridge shall be constructed of sufficient span or spans to permit the construction thereunder of two lines of railway by the Company and of suitable materials and in a workmanlike manner and in all respects to the reasonable satisfaction of the Company’s chief engineer and in accordance with drawings to be previously approved by him.

(3) The colliery company shall be at liberty to construct and maintain upon and across the said bridge such pipes and apparatus as they may require for the purposes of conveying a supply of water for use of the said collieries and the Company shall afford to the colliery company all reasonable facilities for the purpose of constructing and maintaining the said pipes and apparatus.

(4) Until the said bridge shall have been constructed and completed the Company shall afford to the colliery company such other facilities as the colliery company may reasonably require for the purpose of conveying such supply of water as aforesaid across the said Railway No. 1 and the site thereof.

(5) The said bridge shall be at all times maintained in good repair and condition at the expense of the colliery company and to the reasonable satisfaction of the said engineer of the Company and at the levels shown upon the approved plans and if and whenever the colliery company fail to do so the Company may make and do in and upon as well the land of the colliery company as their own lands all such works repairs and things as they may reasonably think necessary in that behalf and the reasonable expense thereof shall be repaid to the Company by the colliery company.

(6) If by reason of the execution of any of the said works or any proceedings of the colliery company in relation thereto or the failure of any such works or any act or omission of the colliery company or of their contractors any railway or work of the Company shall be injured or damaged such injury or damage shall be forthwith made good by the colliery company at their own expense or in the event of their failing so to do then the Company may make good the same and recover the reasonable expense thereof against the colliery company And if any interruption shall be occasioned to the traffic of or upon such railway of the Company by reason of any of the matters or causes aforesaid the colliery company shall pay to the Company all costs and expenses to which the Company may be put as well as full compensation to be recoverable by the Company from the colliery company.

(7) The colliery company shall bear and on demand pay to the Company the reasonable expense of the employment by the Company during the execution repair or maintenance of any work affecting the railway of the Company of a sufficient number of inspectors watchmen and signalmen to be appointed by the Company for watching and signalling the same with reference to and during the execution of any such work of the colliery company and for preventing as far as may be all interference obstruction danger and accident from

A.D. 1911. any of the operations or from the acts or defaults of the colliery company or their contractors.

(8) If any difference shall arise between the Company and the colliery company with respect to anything contained in or arising out of this section or with respect to anything to be done in pursuance of this section such difference shall be settled by arbitration in accordance with the Arbitration Act 1889 by an arbitrator to be appointed by the President of the Institution of Civil Engineers upon the application of either of the parties in difference.

For protection of Gertrude Barbara Rich Tennant.

9. For the protection of Gertrude Barbara Rich Tennant or other the owner or owners for the time being of the Tennant Canal Navigation (all of whom are included under the expression "the owner" when used in this section) the following provisions shall unless otherwise agreed have effect in connection with the construction and maintenance of the works by this Act authorised affecting the said navigation (that is to say):—

(1) The Company shall acquire from the owner her leasehold interest in the land required for the supports walls and pillars of the bridge referred to in this section and shall pay to her the value of her interest in such land but they shall not acquire any other land of the owner otherwise than by agreement but they may purchase and take and the owner shall grant an easement for the purpose of constructing maintaining and using the works by this Act authorised to be constructed over the said canal waterway and towing path:

(2) The bridge carrying Railway No. 1 (Swansea King's Dock Lines) over the Tennant Canal shall not be of a greater width than thirty-three feet and shall not be of a less span over the towing path and canal than fifty feet clear on the square (forty feet waterway and ten feet towpath) and shall have a clear headway of not less than fourteen feet above the present canal water level and the foundations of the abutments of such bridge shall be carried down to a depth of at least six feet below the said water level. The present line of the towpath shall be adhered to:

(3) The Company shall not alter the level of the canal nor of the towing path:

(4) The said bridge shall be constructed under the superintendence and to the reasonable satisfaction of the general manager of the owner and in accordance with plans and sections to be first submitted to and reasonably approved by him and failing approval within twenty-eight days after such submission in accordance with plans and sections to be settled by arbitration as herein-after provided: A.D. 1911.

(5) In constructing the said bridge for carrying the said railway over the said canal navigation the Company shall interfere as little as possible with the waterway and towing path of such canal. The traffic on such navigation shall not at any time be stopped interrupted or interfered with more than is absolutely necessary in the construction of the said bridge and the Company shall indemnify the owner and her traders against all claims both as to damages and costs in respect of any damage injury or accident happening in or through the construction of the said bridge. The Company shall at all times at their own cost maintain the said bridge and all walls for the support thereof in good substantial and complete repair and condition in all respects:

(6) Nothing in this section shall prejudice abridge or defeat the rights of the owner or her tenants and traders to compensation in respect of any lands or easements acquired by the Company from her or them or in respect of any damage or injury arising to her or them for or in consequence of the works of the Company:

(7) If any difference shall arise between the Company and the owner with reference to the provisions of this section such difference shall unless otherwise agreed be determined by an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid in accordance with the provisions of the Arbitration Act 1889 or any statutory modifications or alterations thereof.

10. In constructing and maintaining the railways (Swansea King's Dock Lines) and works authorised by this Act where the

For protection of Swansea

A.D. 1911. same will be carried over or otherwise affect the railways sidings
works lands and property of or under the control of the Swansea
Harbour Trustees. Harbour Trustees (in this section called "the trustees") the
Company shall be subject to the following provisions and
conditions unless otherwise agreed for the protection of the
trustees:—

(1)—(A) Between the points C and D on the plan signed by
Augustus Oswald Schenk on behalf of the trustees and
by William Barton Worthington on behalf of the Com-
pany (herein-after referred to as "the signed plan")
Railway No. 1 shall be carried on a viaduct at such a
level as to provide a clear headway of not less than
fourteen feet six inches above the level of the rails of
the trustees' railways and sidings shown on the signed
plan and with such spans as to provide a clearance
of not less than five feet between the nearest rail of
the trustees' said railways and sidings and any pier
or abutment of the said viaduct and a clearance of
not less than five feet for a line of rails proposed to
be laid by the trustees in the position shown on the
signed plan by dotted blue lines;

(B) East of the point D Railway No. 1 shall be con-
structed on embankment with the exception that at
or about the point marked E on the signed plan
Railway No. 1 shall be carried on a bridge the under-
side of the superstructure of which shall not be lower
than thirty-nine feet above Ordnance datum and which
shall have a clear span on the square of twenty-six
feet and be at an angle of skew of not less than
thirty-five degrees so as to provide for two lines of
rails proposed to be constructed by the trustees in the
position approximately shown on the signed plan by
dotted green lines;

(c) From the point E to its termination Railway No. 1
shall be constructed for not more than two lines of
way and the embankment be so formed between the
points E and B as to leave a clear width of six feet
and no more between the most northerly rail of the
Harbour Trust siding (coloured blue on the signed
plan and lettered F G) and the surface of the
slope of the embankment at the rail level of such
siding;

(D) Railway No. 2 so far as it is upon the property of the trustees shall be constructed for not more than two lines of way: A.D. 1911.

- (2) The Company shall not in constructing the Railways 1 and 2 and works by this Act authorised where the same pass over or affect the property of the trustees without the previous consent in writing of the trustees under their common seal which shall not be unreasonably withheld deviate from the lines or levels shown on the signed plan except so far as may be necessary for the purpose of carrying out the provisions of this section for the protection of the trustees:
- (3) The Company shall not commence the construction of the portions of the Railways Nos. 1 and 2 which will be situate upon property of the trustees nor enter upon or interfere with the railways or sidings of the trustees or any of their land works or property or execute any bridges or works in over or affecting the same until they shall have delivered to the trustees plans sections and drawings of such portions of railways and the viaduct bridge embankment or other works connected therewith and the Company shall upon being required so to do by the trustees from time to time give them any such further information or particulars in relation thereto as the trustees may reasonably require:
- (4) If within one month of the delivery of the plans sections and drawings the trustees serve a requisition upon the Company requiring an alteration or alterations in the plans sections and drawings so submitted as regards the manner in which the railways sidings works or property of the trustees will be affected and the Company fail for one month to agree to such alteration or alterations the points in difference between the Company and the trustees in reference thereto and to the said plans sections and drawings shall be settled and approved by an arbitrator to be appointed as herein-after provided The Company shall not commence such works until after the plans sections and drawings have been approved or settled as the case may be;

A.D. 1911.

- (5) All such works shall be executed in all respects in accordance with the plans sections and drawings so submitted altered or settled as the case may be and to the reasonable satisfaction of the engineer of the trustees and under his superintendence should such be given but at the sole expense in all respects of the Company :
- (6) The Company shall pay to the trustees the reasonable expenses of the employment by them of a sufficient number of inspectors signalmen or watchmen to be appointed if necessary by them for watching their railways and sidings and the conduct of the traffic thereon during the execution of the railways and works of the Company where the same cross the railways and sidings of the trustees and for preventing so far as may be all interference obstruction danger and accident from any of the operations or other acts or defaults of any person or persons in the employ of the Company or their contractors :
- (7) Notwithstanding anything in this Act contained the Company shall from time to time be responsible for making good to the trustees all loss costs damages or expenses which may be occasioned to them or any of their railways sidings works or property or to the traffic on their railways and sidings or any company or person using the same by reason of the failure of any of the intended works of the Company or any act default or omission of the Company or any person in their employ or in the employ of their contractors and the Company shall effectually indemnify and hold harmless the trustees from all claims and demands whatsoever upon or against them by reason of such execution or failure act default or omission :
- (8) The Company shall at their sole expense at all times maintain to the satisfaction of the trustees the viaduct bridge embankment and other works by which the railways by this Act authorised shall be carried over the railways sidings works and land of the trustees in substantial repair and good order and condition and if the Company fail so to do then after one month's notice in writing from the trustees for that purpose or in case of urgency without any notice whatever

the trustees may make and do in and upon as well the lands of the Company as their own lands all such works and things as shall be requisite in that behalf for ensuring such repair and the amount of expenditure reasonably incurred by the trustees in that behalf shall be repaid to them by the Company and in default of payment may be recovered with costs by the trustees from the Company in any court of competent jurisdiction :

- (9) In constructing or maintaining the railways and works by this Act authorised the Company shall take all reasonable precautions not to obstruct or interfere with the traffic passing along the railways sidings and roadways of the trustees but the trustees shall give the Company all reasonable facilities for the carrying out of the works both of construction and maintenance :
- (10) If by reason of any works or proceedings of the Company there shall be any obstruction of or interference with the railways sidings or roadways or works of the trustees so as to impede or prevent the convenient passage of engines and carriages along such railways sidings and roadways or either of them the Company shall pay to the trustees the loss or damage sustained by them by or by reason of such obstruction or interference :
- (11) If by reason or in consequence of the construction maintenance working or user of Railway No. 1 or Railway No. 2 any alteration of or additional signals or any additional works in connection with the trustees railways or sidings shall be rendered necessary the cost thereof shall be borne and paid by the Company to the trustees :
- (12) In the event of the trustees at any time hereafter requiring to make any alteration in the position of the piers or abutments of the said viaduct or bridge or to make any passages or communications or to construct place or lay down any culverts mains pipes wires or apparatus through under on or over the said embankment the trustees shall be at liberty to do so at their own expense all such works to be carried out in accordance with plans sections and drawings to the reasonable approval of the engineer

A.D. 1911.

of the Company and under his superintendence should such be given and in respect of such works subsections (3) (4) and (5) of this section shall (with all necessary modification) apply to the execution of such alterations communications or works :

- (13) Nothing in this Act shall empower the Company to acquire any estate or interest in any greater quantity of land of the trustees than is reasonably necessary for the construction of the railways and works by this Act authorised without the consent in writing in every instance for that purpose first had and obtained of the trustees under their common seal or any greater or other estate or interest in any such land than an easement or right to use such land in perpetuity for such purposes and the provisions of this Act and the Acts incorporated therewith shall be construed and apply accordingly :
- (14) The Company shall pay to the trustees by way of purchase money or compensation for such rights or easements to be acquired under the provisions of this section such an amount as may be agreed upon or in the event of difference as may be determined by arbitration under the provisions of the Lands Clauses Acts relating to the purchase of lands otherwise than by agreement :
- (15) All matters under this section referred to arbitration except as in subsection (14) otherwise provided and any other difference which may arise between the Company and the trustees touching any of the foregoing provisions of this section shall be settled by an arbitrator to be agreed upon by the said parties in difference or failing agreement by an arbitrator nominated on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protection of
Neath Rural
District
Council.

11. For the protection of the Neath Rural District Council (in this section called "the council") the following provisions shall unless otherwise agreed between the Company and the council apply and have effect (that is to say) :—

- (1) Before the Company in any way interfere with any part of the sewerage works of the council at Crymlyn

Burrows in the parish of Coed-ffranc or any sewer drain pipe or apparatus of the council they shall submit to the council for their reasonable approval plans and sections of the works affecting the same and showing the manner in which it is proposed to deal with alter or divert the same and any such works shall only be executed in accordance with the plans and sections so approved or in case of difference as shall be settled by an arbitrator to be appointed as hereinafter provided Provided that if the council fail for a period of twenty-eight days after the submission of such plans and sections to approve or disapprove thereof they shall be deemed to have approved thereof:

- (2) The Company in carrying out the works authorised by this Act shall make good all damage which may be caused to or may be in consequence of any interference with the said sewerage works or any sewer drain pipe or apparatus of the council Provided that the council shall afford the Company all reasonable facilities for carrying out such works:
- (3) If it shall be necessary to construct any portion of the works authorised by this Act over any sewer belonging to the council provision shall be made to the reasonable satisfaction of the engineer to the council for protecting such sewer from injury and for affording reasonable access thereto for the purpose of examination alteration renewal or repair and the council shall have full power and authority at all times free of any wayleave charge or payment to maintain repair renew or relay all such sewers under or across Railway No. 2 (Swansea King's Dock Lines) by this Act authorised subject to the council being responsible for and making good to the Company all costs losses damages or expenses which may be thereby caused to the railway works or property of the Company or the traffic thereon or otherwise by reason of the execution by the council of any works or by reason of the failure of such works or by any act or omission of the council or any persons in their employment or their contractors agents or others employed in such execution and

A.D. 1911.

the council shall effectually indemnify and hold harmless the Company from all claims and demands upon or against them by reason of such execution or failure and of such act or omission:

Provided always that should the Company elect so to do where such works will be laid under across or affect the railway works or property of the Company the Company may themselves execute such works to the reasonable satisfaction in all things of the engineer of the council and the amount reasonably expended by the Company in so doing shall be repaid to them by the council:

- (4) If by reason of the execution of any of the powers of this Act the council shall necessarily incur any cost in altering or removing any existing sewerage works or sewer the Company shall repay such reasonable cost to the council:
- (5) If any difference shall arise between the Company and the council in respect of any matters under this section such difference shall unless otherwise agreed be settled by an arbitrator to be appointed failing agreement on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid in accordance with the provisions of the Arbitration Act 1889.

For protection of Great Western Railway Company and Rhondda and Swansea Bay Railway Company.

12. For the protection of the Great Western Railway Company and the Rhondda and Swansea Bay Railway Company the following provisions shall unless otherwise agreed have effect (that is to say):—

- (1) In this section the expression “the railway companies” includes each of the said companies and means either of them as the case may require the expression “the Great Western Company” means the Great Western Railway Company the expression “the Rhondda Company” means the Rhondda and Swansea Bay Railway Company and the expression “Railway No. 1” means the Railway No. 1 (Swansea King’s Dock Lines) by this Act authorised:
- (2) The Company shall not enter upon take use or interfere with either temporarily or permanently any

property of the railway companies or acquire any easement or right in over or in any way affecting such property except only that the Company may purchase and take and the railway companies may and shall if so required by the Company sell and grant according to their estate and interest in and subject to all easements rights and covenants affecting the property of the railway companies such an easement or right as shall be necessary for the purpose of constructing using and maintaining Railway No. 1 over and across the property of the railway companies and the provisions of the Lands Clauses Acts with respect to lands shall extend and apply to such easement or right so far as such provisions are not inconsistent with this section as fully as if such easement or right were lands within the meaning of those Acts :

- (3) The Company shall pay to the railway companies by way of purchase or compensation for the easements or rights to be acquired under the preceding subsection such an amount as may be agreed upon or in the event of difference as may be determined by arbitration under the provisions of the Lands Clauses Consolidation Act 1845 relating to the purchase of lands otherwise than by agreement and for the purpose of any such determination the acquisition of such easement or right shall be deemed to be a taking of lands within the meaning of section 6 of the Railways Clauses Consolidation Act 1845 :
- (4) The Company shall not enter upon or interfere with any property of the railway companies or execute any works whatever over under across or otherwise affecting such property until the Company shall have delivered to the railway companies plans sections and drawings of such intended works and those plans sections and drawings shall have been approved in writing by the respective engineers of the railway companies or in the event of their unreasonably withholding their approval or failing for twenty-eight days after the delivery of the said plans sections and drawings to approve or disapprove the same until the same shall have been approved by an arbitrator

A.D. 1911.

to be appointed as hereinafter provided and all the intended works shall be executed by the Company at their sole expense in all things according to such approved plans sections and drawings and to the reasonable satisfaction of the respective engineers of the railway companies:

- (5) Notwithstanding anything contained in this Act or shown upon the deposited plans the Company in constructing Railway No. 1 shall not in any way interfere with any portion of the structure of the viaduct carrying the Great Western Company's Swansea District Railway over the Company's Swansea Vale Railway at a point one furlong and nine chains or thereabouts from the commencement of Railway No. 1 westward of the said Swansea Vale Railway or with the embankment adjacent thereto:
- (6) If and when the Great Western Company require to widen the said viaduct the Company shall repay to the Great Western Company the additional cost incurred by them in so doing by reason of the construction of Railway No. 1:
- (7) In constructing the tunnel and adjacent works on Railway No. 1 where it passes under or is in close proximity to the railways or works of the Great Western Company the Company shall take all proper precautions to guard against any injury thereto and the Company shall bear the expense of any reasonable works which the Great Western Company may consider necessary for the protection and safety of their railway:
- (8) In constructing Railway No. 1 between points respectively 0 miles 3 furlongs and 0 miles 6 furlongs from its commencement the Company shall not deviate from the centre line shown on the deposited plans in a north-easterly direction:
- (9) In constructing Railway No. 1 where the same is intended to cross the respective railways and property of the railway companies near the English Crown Spelter Works the Company shall not without the consent of the railway companies deviate laterally from the centre line shown on the deposited plans

and shall carry the same over both those railways by means of a girder bridge of a single span the piers or abutments of which shall not encroach on the property of the railway companies beyond the red lines shown on the plan signed by William Barton Worthington on behalf of the Company by William Wylie Grierson on behalf of the Great Western Company and by William Sutcliffe Marsh on behalf of the Rhondda Company and such bridge shall have a clear headway throughout of not less than fifteen feet from the upper surface of the rails of each of those railways to the underside of the girders The bridge by which Railway No. 1 is intended to be carried under the Great Western Company's Swansea District Railway shall be either a brick or stone structure or* a wrought iron or steel girder bridge with wrought iron or steel flooring or brick arches and the upper surface of the flooring and girders of the said bridge between the parapets shall be at an uniform level of not less than one foot six inches below the level of the rails as intended to be laid of the said Swansea District Railway at the point of crossing Such crossings of the said railways shall be effected in such a manner as not to endanger or affect the stability of the railways and works of the railway companies in any way whatever and should it be necessary in constructing Railway No. 1 or in consequence of the construction thereof for the railway companies to alter or remove the telegraph or telephone posts or wires on or connected with their railway or some of such posts or wires or to add to or alter any signals or signalling apparatus on the said railways the Company shall bear and on demand pay to the railway companies the reasonable expense of and connected with such alteration or addition or restoring the same to their former or placing them in different positions or substituting other telegraph or telephone posts or wires or signals therefor :

- (10) The Company shall in constructing Railway No. 1 across the lines or sidings of the Swansea Harbour Trustees connecting the railway companies' railways and storage sidings with the King's Dock Prince of

A.D. 1911.

Wales Dock and the sidings set apart by the Swansea Harbour Trustees for the railway companies' traffic to and from the King's Dock take all reasonable precautions so as not to impede or interfere with the free and convenient working of the railway companies' trains thereover:

- (11) No pier abutment or other support for Railway No. 1 shall without the consent in writing of the Rhondda Company be placed on any part of the lands numbered 191 in the parish of Llansamlet on the deposited plan owned or held on lease by the Rhondda Company and the Company shall in constructing Railway No. 1 across the sidings of the English Crown Spelter Works take all reasonable precautions not to impede or interfere with the free and convenient working of traffic thereon to or from the railway of the Rhondda Company:
- (12) The Company shall bear and on demand pay to the railway companies the reasonable expense of the employment by them during the construction of Railway No. 1 of a sufficient number of inspectors signalmen or watchmen to be appointed by them for watching their railways and works and the conduct of traffic thereon with reference to and during the execution of the intended works and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of any person or persons in the employ of the Company with reference thereto or otherwise:
- (13) Notwithstanding anything in this Act the Company shall from time to time be responsible for and make good to the railway companies all losses costs damages and expenses which may be occasioned to them or any of their works or property or to the traffic on their railways or on the sidings and lines used by them or to any company or person using the same or otherwise during the execution or renewal by the Company of any works affecting the property of the railway companies by reason of the failure of any of the intended works or of any act default or omission of the Company or of any persons in their employ or

of their contractors or otherwise and the Company shall effectually indemnify and hold harmless the railway companies from all claims and demands upon or against them by reason of such execution renewal or failure and of any such act default or omission:

- (14) The Company shall at their sole expense at all times maintain the bridges tunnels and other works by which Railway No. 1 shall be carried over under or adjoining any property of the railway companies in substantial repair and good order and condition to the reasonable satisfaction in all respects of the respective engineers of the railway companies and if and whenever the Company fail so to do after one month's notice from the railway companies for that purpose or in case of urgency without notice the railway companies may make and do in and upon as well the lands of the Company as their own lands all such works and things as the railway companies shall think requisite in that behalf for ensuring such repair and the sum from time to time reasonably incurred in that behalf shall be repaid to them by the Company and in default of full repayment the amount due may be recovered with full costs by the railway companies from the Company in any court of competent jurisdiction:
- (15) If any subsidence shall occur by which the level of the bridge carrying Railway No. 1 over the railways sidings and property of the railway companies shall be lowered so that the headway prescribed by this section or shown on the deposited sections as the case may be be not maintained then the Company shall at their own cost whenever called upon by the railway companies to do so raise or lift the bridge over the railways sidings and property of the railway companies to the height and level above Ordnance datum at which it was originally constructed under the provisions of this Act:
- (16) In constructing Railway No. 1 the Company shall not in any way obstruct or interfere with the traffic passing along the railways and sidings of the railway companies or any of them and if by reason of any works or proceedings of the Company there shall be any

A.D. 1911.

obstruction or interference with the railways and sidings of the railway companies or any of them so as to impede or prevent the convenient passage of engines and carriages along the same the Company shall make good to the railway companies any loss they may sustain by reason of any such obstruction or interference :

- (17) If in the opinion of the railway companies or (in case of difference between them and the Company) in the opinion of the arbitrator to be appointed as hereinafter provided it shall be necessary for the railway companies to purchase or pay compensation for any minerals required to be left unworked then—

(A) If the same have to be left unworked solely for the protection and safety of any works constructed under the powers of this Act the Company shall on demand pay to the railway companies all reasonable costs and expenses incurred by them in relation to any such purchase or payment of compensation ; or

(B) If the same have to be left unworked for the protection and safety of any property of the railway companies as well as of the said works to be constructed under the powers of this Act the Company shall on demand pay to the railway companies a fair proportion of the reasonable costs and expenses incurred by them in relation to any such purchase or payment of compensation and the proportion of such costs and expenses payable by the Company shall in case of difference be determined by arbitration as hereinafter provided :

- (18) If the railway companies shall at any time hereafter be desirous of widening their railways under Railway No. 1 the Company shall afford to the railway companies all reasonable and proper facilities for the construction of such widening according to plans to be agreed between the respective principal engineers of the railway companies and the Company or in case of difference to be determined by arbitration as hereinafter provided :

- (19) If any dispute shall arise between the railway companies and the Company respecting the matters and

provisions aforesaid or any of them such dispute shall (except as aforesaid) be settled by an arbitrator to be agreed upon between the parties or in case of difference to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid in accordance with the provisions of the Arbitration Act 1889.

A.D. 1911.

13. The Company may and shall abandon the construction of—

Abandonment of; authorised works.

(A) Railway No. 6 authorised by the Midland Railway (West Riding Lines) Act 1898; and

(B) So much of Railway No. 4 authorised by the said Act of 1898 as lies between the south-east side of Savile Road in the urban district of Thornhill and the authorised termination of that railway;

(C) The works authorised by the Midland Railway Act 1907 in connection with the construction of those railways;

and all the powers and obligations conferred or imposed upon the Company by the said Act of 1898 and the said Act of 1907 or any Act or Acts amending the same respectively with respect to or in connection with and so far as the same apply to the said railway and portion of railway and works shall cease.

14. The abandonment by the Company under the authority of this Act of any portion of any railway or works shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the Company on such land for the purpose of surveying and taking levels or probing or boring to ascertain the nature of the soil or setting out of the line of railway and shall not prejudice or affect the right of the owner or occupier of any land which has been temporarily occupied by the Company to receive compensation for such temporary occupation or for any loss damage or injury which has been sustained by such owner or occupier by reason thereof or of the exercise as regards such land of any of the powers contained in the Railways Clauses Consolidation Act 1845 or the Midland Railway (West Riding Lines) Act 1898 or the Midland Railway Act 1907.

Compensation for damage to land by entry &c. for purposes of railways abandoned.

15. Where before the passing of this Act any contract has been entered into or notice given by the Company for the purchasing of any land for the purposes of or in relation to any

Compensation to be made in respect of

A.D. 1911.
portions of
railways
abandoned.

portions of the railways or works authorised to be abandoned by this Act the Company shall be released from all liability to purchase or to complete the purchase of any such land but notwithstanding full compensation shall be made by the Company to the owners and occupiers or other persons interested in such land for all injury or damage sustained by them respectively by reason of the purchase not being completed pursuant to the contract or notice and the amount and application of the compensation shall be determined in manner provided by the Lands Clauses Acts for determining the amount and application of compensation paid for lands taken under the provisions thereof.

Power to
Company to
make rail-
ways at
Bradford.

16. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the railways hereinafter described with all proper approaches stations sidings works and conveniences connected therewith and may enter upon take and use such of the lands delineated on those plans and described in the deposited books of reference relating thereto as may be required for those purposes or for providing accommodation for persons belonging to the working class who may be displaced in executing the powers of this Act or any other Act relating to the Company.

The railways hereinbefore referred to and authorised by this Act are—

(Bradford
through
lines.)

Two railways situate wholly in the West Riding of the county of York to be called the Bradford Through Lines—

Railway No. 1 (4 miles 7 furlongs 2 chains in length) commencing in the parish and urban district of Cleckheaton by a junction with the Lancashire and Yorkshire Railway (Cleckheaton Branch) and terminating in the parish city and county borough of Bradford by a junction with the Midland Railway (Leeds to Bradford):

Railway No. 2 (2 furlongs 6 chains in length) situate wholly in the parish and urban district of Cleckheaton commencing by a junction with the said Lancashire and Yorkshire Railway (Cleckheaton Branch) and terminating by a junction with the proposed Railway No. 1 at or near the south side of Wyke Lane.

17. For the protection of the trustees of the will of the late Sir Henry William Ripley Baronet (in this section called "the trustees") the Bradford Dyers Association Limited (in this section called "the association") and James Sharp Henry Ripley and Herbert Anderson Foster (in this section called "the debenture stock trustees") the following provisions shall unless otherwise agreed between the Company the trustees and the association have effect (that is to say):—

A.D. 1911.

For protec-
tion of Sir
H. W. Rip-
ley's trustees
and Bowling
Dye Works.

(1) In this section unless the context otherwise requires the word "association" shall include the association the debenture stock trustees and their respective successors in title and assigns and the owner or owners and debenture stock trustees for the time being of the Bowling Dye Works and other hereditaments and premises conveyed to the association by the trustees by indenture dated the eighth day of April one thousand eight hundred and ninety-nine and the word "trustees" shall include the present trustees under the will of Sir Henry William Ripley and any future trustees or other persons or person owners or owner for the time being of the estate at Bradford belonging or reputed to belong to the trustees (and hereinafter called "the Trustees' Estate"):

(2)—(A) The Company shall execute at their own expense efficient works to the reasonable satisfaction of the trustees and the association or their respective agents for collecting all sources or feeders of water met with in the construction of the tunnel shown on the deposited plan of Railway No. 1 (Bradford Through Lines) between its south end and a point ten yards northward of the drift laid between the Waterloo Pit and the Bowling Dye Works of the association or in the construction of any shafts in connection with such portion of the tunnel and for conducting such water to the Trustees' Estate or the said Bowling Dye Works;

(B) And if any sources or feeders of soft water are met with in the construction of the portion of such tunnel between Rooley Lane and the said point ten yards northward of the drift laid between the Waterloo Pit and the said dye works of the association or of any shafts in connection with such portion

A.D. 1911.

of the said tunnel the Company shall if required by the trustees or the association execute such works as may be reasonably practicable for collecting and conveying such "soft water" in a separate pipe or conduit to the said estates or to one of them and for delivering the same to the trustees or to the association separately from the hard water;

(c) If either the trustees or the association shall desire to have any soft water which may be met with in the construction of the portion of the tunnel south of Rooley Lane or in the construction of any shafts in connection with the last-mentioned portion of the tunnel separated from the hard water the Company shall at the cost of the party requiring it separate such soft water from the hard water and convey the soft water so separated to the point at Rooley Lane from which point the Company are as hereinbefore provided to convey the waters separated to the point ten yards northward of the drift at the Waterloo Pit before mentioned and any works constructed by the Company under the provisions of this subsection for the purpose of separating the soft water and hard water met with in the construction of the tunnel and shafts south of Rooley Lane and conveying the same to the said point at Rooley Lane shall thereafter be maintained by the Company at the cost of the trustees or of the association as the case may be:

(3) The Company shall so far as practicable maintain all works so executed by them in good order and condition and shall deliver to the trustees or to the association the whole or such portion of the aforesaid water (both hard and soft) as the trustees may direct free of charge at such point near the Waterloo Pit on the level of the tunnel as the trustees may reasonably request:

(4) If at any time during the construction or within eight years after the completion of the said tunnel or of any works connected therewith the supply of hard water on the Trustees' Estate including the portion thereof conveyed to the association shall fall short of four and a half million gallons per week and if at any time during such period the amount of hard

water collected and conveyed to the Trustees' Estate including as aforesaid as provided by this section shall not make up the deficiency the corporation shall from time to time continuously during such period when such deficiency shall occur supply to the trustees and the association any deficiency below four and a half million gallons per week with corporation water and the association or the trustees as the case may be shall at the end of each year during which any water shall have been so supplied by the corporation pay to the corporation in respect of the quantity of water so supplied such an amount or sum as shall be equal to the difference between the cost (including the usual and proper depreciation of plant and machinery and repairs and renewals) actually incurred by the association or the trustees of pumping water from the hard water well of the association during such year and the cost of pumping which would otherwise have been incurred by them if the association and the trustees could also in addition to the actual quantity of water pumped from the said well have pumped the quantity so supplied by the corporation such amount to be settled by the respective engineers of the corporation and the trustees and the association or in case of dispute by a referee to be appointed by such engineers:

- (5) The trustees and the association shall at the end of each year after the commencement of the construction of the said tunnel and works until and including the eighth year after completion thereof send to the corporation a notice in writing of any such deficiency of water as aforesaid and if the corporation desire to dispute the accuracy of such notice they shall within one month of its receipt give the trustees and the association notice in writing of such desire and the question of the amount of such deficiency shall then be fixed by the engineers of the corporation and the trustees and the association or in case of dispute by such referee as they shall appoint. The several deficiencies which shall have occurred during the said period of eight years shall be averaged and the corporation shall thereafter as and when the trustees or

A.D. 1911.

the association may require supply to the trustees and the association in perpetuity such a quantity of water continuously every week from the corporation supply as shall represent the average weekly deficiency as aforesaid at and after the rate of payment aforesaid :

- (6) The supply of water by the corporation hereby provided for shall not relieve the Company of their obligations under this section with respect to the collection and delivery separately of soft and hard water met with in the construction of the said tunnel and shafts in this section referred to :
- (7) If under the provisions of this section the Company are required to construct any works beyond the area necessarily excavated for the construction of the said tunnel and shafts the corporation will indemnify the Company against the cost of construction and maintenance of such works and if under the provisions of subsection (3) of this section the Company shall be required to continue a supply of water the corporation shall indemnify the Company against the cost of continuance of such supply :
- (8) Subject to the provisions hereinafter contained all water to be supplied by the corporation hereunder (other than and except water delivered to the trustees under the provisions of subsection (10) of this section) shall be delivered at such point or points on the estate of the association conveyed by the said indenture dated the eighth day of April one thousand eight hundred and ninety-nine as may be reasonably required by the association and the corporation shall at their own cost and expense lay make and maintain in good repair order and condition such mains valves pipes and other works and supply and fix such meter or meters as shall from time to time be necessary and proper for delivering in regular quantities and volumes the amount of water by this section required to be supplied by them and such water shall be delivered and supplied at such times as shall be from time to time reasonably required by the trustees or the association and no charge shall be made by the corporation for the use of any meter or meters :

(9) As between the association and the trustees the association shall (subject to the prior right of the association to make use of the same for the purposes of their business) deliver or cause to be delivered all water supplied to the association by the corporation hereunder (except any soapy water which after use shall be unfit to turn into the subsiding dams) for the use of the trustees in the same manner as to point of delivery condition standard of purity and in all respects as if the same were water obtained from the supply conveyed or assured to the association by the trustees by the said indenture dated the eighth day of April one thousand eight hundred and ninety-nine and all such water so delivered shall be taken and reckoned as part of the minimum quantity of four and a half million gallons per week referred to in subsection (4) of this section:

(10) If from any cause whatever the association shall cease at any time temporarily or otherwise to deliver or cause to be delivered water to the trustees in accordance with their obligations under the said indenture dated the eighth day of April one thousand eight hundred and ninety-nine and this section the trustees shall during such periods of cesser have the right to obtain for themselves and the corporation so far as their liability to supply water as aforesaid extends shall deliver to them direct from the mains or pipes of the corporation or otherwise a supply to make up to the extent of the four and a half million gallons per week the quantity which the association shall fail to deliver or cause to be delivered to the trustees and the quantity so obtained by the trustees shall be delivered into the subsiding dams now existing on the said estate of the association or in the immediate vicinity thereof as shall be reasonably required by the trustees and shall be taken to be on account or in respect of the water by this section required to be supplied by the corporation and any meter and valves required for the purposes of such supply to the trustees shall be supplied and fixed and kept in repair by the corporation free of any charge to the trustees:

(11) The trustees and the association and the corporation shall have the right at all reasonable times of access

A.D. 1911.

to and of reading all meters used in connection with all supplies of water given by the corporation to the trustees or the association under the provisions of this section :

- (12) The trustees shall on demand pay to the corporation for any portion of the said water supplied by the corporation solely for the use of the trustees under subsection (10) of this section and which shall not have been made use of for the purposes of the business of the association at and after the same rate of payment as mentioned in subsection (4) of this section :
- (13) The corporation and the trustees and the association by their duly authorised agents may during the construction of the said tunnel and after completion thereof on giving twenty-four hours' notice to the Company's local resident engineer enter upon and inspect the said tunnel and any works connected therewith or executed by the Company under the provisions of this section and take samples of the water which may be found in the said tunnel or any of such works and the trustees may during the construction of the tunnel and works direct which sources or feeders of water they desire to have put into the soft water conduit or pipe and the Company shall afford all reasonable facilities for those purposes or any of them :
- (14) The trustees shall if so required by the corporation give to them free of charge copies of all analyses which the trustees may obtain of water found in the works of the Company :
- (15) Save so far as is by this section expressly provided nothing herein contained shall vary prejudice or affect the respective rights and obligations of the trustees and the association respectively under the said indenture dated the eighth day of April one thousand eight hundred and ninety-nine :
- (16) If any difference shall arise between the Company the corporation the trustees or the association or any two or more of such bodies under or with reference to any provisions of this section or in any way arising

thereout or as to any works to be carried out in pursuance thereof such dispute shall be referred to an arbitrator to be agreed upon between the parties in difference or failing agreement to be appointed by the President of the Institution of Civil Engineers in accordance with the provisions of the Arbitration Act 1889. A.D. 1911.

18.—(1) The provisions of section 133 of the Lands Clauses Consolidation Act 1845 shall not from the commencement to the completion of the construction of the Bradford Through Lines apply to any lands within the city acquired or used by the Company for the purposes of or in connection with the said lines. Provisions as to rating.

(2) For a period of twenty years from and after the completion of the Bradford Through Lines there shall be deducted from the rates and assessments imposed on and payable by the Company in respect of any hereditaments of the Company in the city (in addition to any other statutory or other deduction to which the Company would otherwise be entitled) the annual sum of eight thousand pounds.

(3) As regards all rates to be laid by reason or for the purposes of this section or as regards any increase in any existing rates due to the payments or allowances to be made under this section the Lancashire Company as occupiers of any land used by them in connection with their undertaking shall in respect of such lands be assessed for such rates in the proportion of one-fourth part only of the net annual value thereof.

19. The following provisions for the protection and benefit of the corporation shall unless otherwise agreed in writing between the corporation and the Company apply and have effect with regard to the construction of the Bradford Through Lines :— For protection of corporation of Bradford.

(1) In this section the expression "street" has the same meaning as that assigned to it by the Public Health Act 1875 :

(2) The Company shall not break up any street or interfere with any sewer drain or watercourse or any gas or water or electricity mains pipes or apparatus or other work of the corporation until they shall have given to the town clerk of Bradford fourteen clear days' notice in writing of their intention to commence the intended works accompanied by plans and

A.D. 1911.

sections and other necessary particulars showing the works proposed to be executed by the Company so far as they affect the streets sewers drains water-courses gas water and electricity mains pipes apparatus and other work proposed to be interfered with and until the corporation shall have signified their approval of the same or if within the said period they shall not have signified their approval or if they shall have signified their disapproval a difference shall be deemed to have arisen within the meaning of this section and all such works shall be done under the superintendence (if the same be given) and to the reasonable satisfaction of the corporation:

- (3) The piers and abutments and foundations of all bridges constructed shall extend and be made below the surface of the ground to such depth as will allow the corporation to make repair and relay any sewers drains gas water and electricity mains pipes and apparatus:
- (4) The said bridges shall be constructed and maintained so as to prevent as far as practicable the dripping of water:
- (5) The Company before temporarily obstructing any street within the city shall except in the case of School Street provide and until the obstruction is removed maintain to the reasonable satisfaction of the corporation proper accommodation for the traffic along such street and access to houses and property therein and for preserving an uninterrupted supply of gas and water and electricity to such houses and shall cause such obstruction to be properly fenced and lighted:
- (6) All streets except Leeds Road Hall Ings and Swaine Street within the city broken up or altered by the Company (other than those referred to in the section of this Act of which the marginal note is "Power to Company to stop up roads and footpath without providing substitutes") shall be restored to as good a condition as before the interference therewith respectively by the Company to the reasonable satisfaction of the corporation and where the surface of any street has been interfered with or disturbed by

the Company the Company shall well and sufficiently and to the satisfaction of the corporation restore the surface of the street so interfered with or disturbed: A.D. 1911.

- (7) The Company shall keep the surface of all such streets except Leeds Road Hall Ings and Swaine Street and other than as aforesaid broken up altered interfered with or disturbed by the Company in good repair for a period of twelve months from the completion or restoration of the same:
- (8) Any new road or footpath required to be made by the Company under this Act within the city shall be made to the reasonable satisfaction of the engineer of the corporation and such road shall when made be maintained and kept in repair by the Company for a period of twelve months from the completion of the same:
- (9) In sections 18 to 23 of the Railways Clauses Consolidation Act 1845 the words "company" or "society" shall for the purpose of this section be held to extend to and include the corporation and apply to all property of the corporation affected by the works of the Company:
- (10) Whenever it may be necessary to intercept or interfere with any sewer or drain under a public roadway the Company shall submit particulars to the corporation who shall if necessary thereupon construct another sewer or drain in lieu of and of equal capacity with the sewer or drain so proposed to be intercepted or interfered with and connect such substituted sewer or drain with any existing sewer or drain of the corporation and the Company shall pay the reasonable expense of all such works and shall give the corporation at all times hereafter full access to all such sewers or drains for the purposes of maintenance repair and renewal:
- (11) Whenever the gas or water or electricity mains pipes or apparatus of the corporation shall be severed or interfered with in the execution of any of the powers of this Act and whenever by reason of the exercise of such powers it is necessary for maintaining the supply of gas and water and electricity

A.D. 1911.

to lay down additional mains pipes or apparatus such additional mains pipes or apparatus (of the same size and description as those previously in use) shall previously to the severance or interference be laid down by the corporation at the expense of the Company:

- (12) If by reason of the execution of any of the powers of this Act the corporation shall necessarily incur any cost in repairing or altering any existing sewer drain gas water or electricity mains pipes or apparatus the Company shall repay to the corporation such cost:
- (13) In case it shall be necessary to construct the railway over any sewer or drain of the corporation provision shall be made to the satisfaction of the corporation for protecting such sewer or drain from injury and for affording easy access thereto for the purpose of examination maintenance alteration renewal or repair:
- (14) The Company shall take all reasonable precautions in the construction of the railways and in the execution maintenance user or repair of any of their works or apparatus not to obstruct or interfere with the free uninterrupted and safe user of any tramway belonging to the corporation or any traffic thereon:
- (15) The Company shall be responsible for and make good to the corporation all losses damages and expenses which may be occasioned to the corporation or to the traffic on their tramways now laid on streets to be crossed by the railways or to any authority or person using the same by or by reason of the execution or failure of any of the intended works or apparatus or by reason of any act default or omission of the Company or of any person in their employ or of any contractors for the intended works or any part thereof and the Company shall effectually indemnify and hold harmless the Corporation from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission:
- (16) If the Company shall in the exercise of their powers widen lengthen strengthen reconstruct alter or repair any bridges under or upon which tramways works or

apparatus of the corporation are now laid on streets to be crossed by the railways or the approaches thereto or widen or alter any railway thereunder or thereover and it shall be necessary for such purpose that the working or user of any part of the tramways or any apparatus under or upon such bridge or approaches be wholly or in part stopped or delayed or that such part of the tramways or any apparatus be temporarily taken up diverted or removed and if the Company accordingly give to the corporation twenty-eight days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such stoppage delay taking up diversion or removal then the working or user of such part of the tramways or apparatus shall be stopped or delayed or such part of the tramways or apparatus shall be taken up diverted or removed as stated in such notice at the reasonable expense of the Company under the superintendence of the corporation but no such working or user shall be stopped or delayed for a longer period than may be necessary for effecting such purpose as aforesaid and such part of the tramways or apparatus shall be restored with all practicable dispatch:

A.D. 1911.

- (17) Any difference which may arise between the corporation and the Company as to the true intent and meaning of any of the provisions of this section or as to the mode of giving effect thereto shall (unless otherwise agreed upon) be settled by an engineer to be appointed upon the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

20. The agreement dated the seventh day of March one thousand nine hundred and eleven and made between the Company of the one part and the corporation of the other part as set forth in the First Schedule to this Act is hereby confirmed and made binding upon the parties thereto.

Confirming
agreement
with cor-
poration of
Bradford.

21. If any work executed by the corporation in pursuance of this Act or of the agreement set forth in the First Schedule to this Act involves an alteration of a telegraphic line belonging

For pro-
tection of
Postmaster-
General.

A.D. 1911. — to or used by the Postmaster-General the enactments contained in section 7 of the Telegraph Act 1878 shall apply to such alteration as if the corporation were undertakers within the meaning of that Act.

For pro-
tection of
West Riding
County
Council.

22. For the protection of the county council of the West Riding of the county of York (in this section called "the county council") the following provisions shall have effect unless otherwise agreed in writing between the county council and the Company (that is to say) :—

(1) The bridge whereby Railway No. 1 (Bradford Through Lines) by this Act authorised is carried over the Leeds and Whitehall Branch Main Road (otherwise the Dewsbury and Bradford Road) at Oakenshaw in the urban district of Cleckheaton shall be of the full width of the said road between the fences thereof and no part of the abutments of the said bridge shall project beyond the line of the said fences :

(2) The said bridge shall have a clear headway throughout of not less than eighteen feet from the surface of the said road to the underside of the bridge and shall be constructed and maintained as far as practicable drop dry at all times :

(3) Not less than one month before commencing to construct the said bridge the Company shall submit to the surveyor of the county council for his reasonable approval a plan showing the proposed position of the abutments of the bridge together with a sufficient description of the bridge to show the proposed headway. If before the expiration of the said period of one month the said surveyor has not intimated in writing to the Company his disapproval of such plan and description he shall be deemed to have approved thereof :

(4) If any difference arise between the Company and the county council as to the true intent and meaning of any of the provisions of this section or anything to be done or not to be done thereunder or as to the reasonableness of any requirements or directions given or made by or on behalf of the county council under the provisions of this section such difference shall be settled by an engineer to be agreed upon or failing

agreement to be appointed as arbitrator by the President of the Institution of Civil Engineers on the application of either of the parties in difference after notice to the other and subject as aforesaid the Arbitration Act 1889 shall apply. A.D. 1911.

23. The following provisions for the protection of the Great Northern Railway Company (hereinafter in this section called "the Great Northern Company") shall unless otherwise agreed between the Company and the Great Northern Company in writing under their common seals apply and have effect:—

For protection of Great Northern Railway Company.

- (1) The expression "property of the Great Northern Company" where used in this section shall include any land railway siding or work belonging to the Great Northern Company:
- (2) The Company shall not enter upon take purchase use or interfere with any property of the Great Northern Company except that the Company may purchase and take and the Great Northern Company may and shall sell and grant according to their estate and interest in and subject to all easements rights and covenants affecting the property of the Great Northern Company such an easement or right as shall be necessary for the purpose of constructing using and maintaining Railway No. 1 (Bradford Through Lines) by this Act authorised so far as the same is according to this Act to be constructed under the property of the Great Northern Company:
- (3) The consideration to be paid for any easement or right to be acquired by the Company under the preceding subsection shall in case of dispute be determined in manner provided by the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement and for the purpose of any such determination the acquisition of such easement or right shall be deemed a taking of lands within the meaning of section 6 of the Railways Clauses Consolidation Act 1845:
- (4) The Company shall not construct any works whether temporary or permanent on or under or which may affect any property of the Great Northern Company except in accordance with the provisions of this section

A.D. 1911.

and under the superintendence and to the reasonable satisfaction of the principal engineer of the Great Northern Company (in this section referred to as "the engineer") and of such dimensions quality and strength of material and design and method of construction and according to such plans sections and specifications as shall have been previously submitted to and reasonably approved by the engineer or in case of difference between him and the engineer of the Company as shall have been approved by an arbitrator to be appointed as hereinafter provided Provided if for one month after such plans sections and specifications shall have been submitted to the engineer he shall fail to give notice to the Company of his objections thereto he shall be deemed to have approved thereof :

- (5) The Company shall at all times maintain the portions of the said Railway No. 1 including the said tunnel which affect the property of the Great Northern Company in substantial repair and good order and condition in accordance with the plans sections and specifications so approved as aforesaid to the reasonable satisfaction in all respects of the engineer and if and whenever the Company fail so to do the Great Northern Company may make and do in and upon as well the property of the Company as their own lands all such works and repairs as may be reasonably requisite in that behalf and the reasonable amount of their expenditure in so doing as certified by the engineer shall upon demand be repaid to them by the Company :
- (6) The Company shall bear and on demand pay to the Great Northern Company all expenses incurred by the Great Northern Company in placing timbers under their rails or executing any other works for supporting the property of the Great Northern Company which in the opinion of the engineer may be necessary in consequence of the execution or user by the Company of any work affecting the property of the Great Northern Company :
- (7) The Company shall not in the execution maintenance or repair of any of their works remove or disturb

any of the rails of any railway siding or other work belonging to the Great Northern Company or obstruct hinder or interfere with the free uninterrupted and safe user of any such railway siding or work or any traffic thereon and shall at their own expense during the execution or repair of any of their works execute and maintain such temporary works as the engineer may consider necessary for the purpose of avoiding risk to the railways or works of the Great Northern Company or interruption to the traffic thereon :

- (8) The Company shall bear and on demand pay to the Great Northern Company the reasonable expense of the employment by the Great Northern Company during the execution or repair of any work affecting any property of the Great Northern Company of such inspectors watchmen and signalmen to be appointed by the Great Northern Company as may be necessary for watching and signalling the same with reference to and during the execution or repair of any such work of the Company and for preventing all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Company or their contractors or any person in the employment of the Company or of their contractors with reference thereto or otherwise :
- (9) If by reason of the construction or working of the said Railway No. 1 or any of the works connected therewith it shall become necessary to add or alter any signal cabins signal posts signals or other similar works on any property of the Great Northern Company the Great Northern Company may make such additions and alterations and the reasonable expense of such additions and alterations shall be repaid by the Company on demand and the cost of maintaining and working any such additional signal cabins signal posts signals or other similar works and the increased cost (if any) of maintaining and working any such altered signal cabins signal posts signals or other similar works shall at the end of every half-year be repaid by the Company to the Great Northern Company :

A.D. 1911.

(10) If by reason of the execution user or failure of any of the works of the Company or any act or omission of the Company or of their contractors or of any person in the employment of the Company or of their contractors or otherwise any property of the Great Northern Company shall be injured or damaged such injury or damage shall be forthwith made good by the Company at their own expense or in the event of their failing so to do then the Great Northern Company may make good the same and the reasonable expenses thereof as certified by the engineer shall be repaid to the Great Northern Company by the Company on demand and the Company shall indemnify the Great Northern Company against all losses which the Great Northern Company may sustain and shall pay all costs charges and expenses which the Great Northern Company may be put to or incur by reason of the execution user or failure of any of the works of the Company or any act or omission of the Company or their contractors or any person in the employment of the Company or their contractors or otherwise :

(11) If in the opinion of the Great Northern Company or in case of difference between them and the Company of an arbitrator to be appointed as hereinafter provided it shall be necessary for the Great Northern Company to purchase or pay compensation for any minerals required to be left unworked (A) for the protection or safety of any works constructed under the powers of this Act then the Company shall on demand pay to the Great Northern Company the amount paid by the Great Northern Company for or in respect of such minerals together with all costs and expenses incurred by them in relation to any such purchase or payment of compensation or (B) for the protection or safety of the property of the Great Northern Company and also of the said works to be constructed under the powers of this Act then the Company shall on demand pay to the Great Northern Company a fair proportion of the amount paid by the Great Northern Company for or in respect of such minerals and of the costs and expenses incurred by them in relation to any such purchase or payment of compensation and the proportions as aforesaid payable by the Company to the

Great Northern Company shall in case of difference be determined by arbitration as hereinafter provided : A.D. 1911.

(12) The Company and the Great Northern Company may agree upon any variation of or alteration in the works in this section provided for or of or in the manner in which the same shall be executed :

(13) If the Great Northern Company shall at any time hereafter be desirous for the purpose of forming branches or sidings or other works of constructing bridges or other works under or over the said Railway No. 1 the Company shall afford to the Great Northern Company all reasonable and proper facilities for the construction of such bridges or other works according to plans to be agreed on between the respective engineers for the time being of the two companies or in case of difference to be determined by arbitration as hereinafter provided :

(14) If any difference shall arise between the Company and the Great Northern Company or their respective engineers as to anything to be done or not to be done under the subsections hereof Nos. (4) to (13) (both inclusive) the same shall from time to time be determined by an engineer to be appointed as arbitrator by the President of the Institution of Civil Engineers on the application of either party after notice to the other and the Arbitration Act 1889 or any statutory modification thereof shall apply to the arbitration.

24. The railways shall for the purposes of maximum rates and charges for merchandise traffic (including perishable merchandise by passenger train) be part of the railway of the Company as if the same had been part of the Midland Railway at the date of the passing of the Midland Railway Company (Rates and Charges) Order Confirmation Act 1891 and shall for all other purposes be part of the undertaking of the Company as authorised by the Midland Railway Consolidation Act 1844 :

Rates and charges for railways.

Provided always that for the purposes aforesaid the Swansea King's Dock Lines shall be deemed to have formed part of the Swansea Vale Railway from Swansea to Brynamman at the date of the passing of the said Act of 1891 ;

A.D. 1911.

Provided also that maximum fares to be charged by the Company for the conveyance of passengers upon the railways including every expense incidental to such conveyance shall not exceed the following (that is to say) :—

For every passenger conveyed in a first-class carriage three pence per mile;

For every passenger conveyed in a second-class carriage two pence per mile;

For every passenger conveyed in a third-class carriage one penny per mile;

For every passenger conveyed on the railways for a less distance than three miles the Company may charge as for three miles and every fraction of a mile beyond three miles or any greater number of miles shall be deemed a mile.

Passengers' luggage.

25. Every passenger travelling upon the railways may take with him his ordinary luggage not exceeding one hundred and fifty pounds in weight for first-class passengers one hundred and twenty pounds in weight for second-class passengers and one hundred pounds in weight for third-class passengers without any charge being made for the carriage thereof.

Power to divert footpath.

26. The Company may divert the public footpath referred to in the next following table in the manner shown upon the deposited plans and subject to the provisions of this Act may stop up and cause to be discontinued as a footpath so much of the existing footpath as will be rendered unnecessary by the new portion of footpath so shown on the said plans (that is to say) :—

Railway.	Parish.	No of Footpath on deposited Plan.
Swansea King's Dock Lines Railway No. 1.	Llausamlet - - - -	8 and 9.

Power to Company to stop up roads and footpath without providing substitutes.

27. The Company may in connection with Railway No. 1 (Bradford Through Lines) by this Act authorised stop up so much as is situate within the limits of deviation shown upon the deposited plans of the roads in the city known as Eastbrook Lane George Street Great Cross Street West Street Bentley Street Brown Street Ship Alley Watkins Alley Valley Road between Canal Road and School Street Salem Street and Hallfield

Street and may stop up the footpath numbered on the deposited plans of the said railway 195 in the city and thereupon all rights of way over such portions of the said roads and the said footpath shall be extinguished but no such stopping up shall take place unless the Company are owners in possession of all houses and lands on both sides thereof except so far as the owners lessees and occupiers of such houses and lands may otherwise agree and from and after such stopping up all rights of way over or along the roads or portions of roads and footpath authorised to be stopped up shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the sites of the roads or portions of roads and footpath so stopped up:

A.D. 1911.

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

28. Notwithstanding anything contained in section 46 of the Railways Clauses Consolidation Act 1845 the Company shall not be liable to maintain the surface of any road or public highway which shall be carried over any railway by this Act authorised by a bridge or bridges or the immediate approaches thereto except so far as the level of such road public highway or approaches is permanently altered so as to increase the gradient.

Company not bound to maintain surface of roads &c. unless level permanently altered.

29. If the railways are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the railways or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Period for completion of railway.

30. If the Company fail within the period limited by this Act to complete the railways the Company shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the uncompleted railway or railways is or are completed and opened for the public conveyance of passengers or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of the uncompleted railway or railways.

Imposing penalty unless railway opened.

A.D. 1911.

The said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in the third section of the Railway and Canal Traffic Act 1854.

Every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Paymaster-General for and on behalf of the Supreme Court in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as hereinafter provided.

But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company were prevented from completing or opening the uncompleted railway or railways by unforeseen accident or circumstances beyond their control Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control.

Application
of penalty.

31. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railway or railways in respect of which the penalty has been incurred or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act for the purposes of such railway or railways and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit.

If no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent or the railway or railways in respect of which the penalty has been incurred or any part thereof has

been abandoned be paid or transferred to such receiver or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or retransferred to the Company.

A.D. 1911.

32. And whereas in order to avoid in the execution and maintenance of any works authorised by this Act injury to the houses and buildings within one hundred feet of any railway by this Act authorised it may be necessary to underpin or otherwise strengthen the same Therefore the Company at their own costs and charges may and if required by the owners or lessees of any such house or building shall subject as hereinafter provided underpin or otherwise strengthen the same and the following provisions shall have effect (that is to say) :--

Under-
pinning of
houses near
railways.

- (1) At least ten days' notice shall unless in case of emergency be given to the owners lessees and occupiers or by the owners or lessees of the house or building so intended or so required to be underpinned or otherwise strengthened :
- (2) Each such notice if given by the Company shall be served in manner prescribed by section 19 of the Lands Clauses Consolidation Act 1845 and if given by the owners or lessees of the premises to be underpinned or strengthened shall be sent to the principal office of the Company :
- (3) If any owner lessee or occupier of any such house or building or the Company as the case may require shall within seven days after the giving of such notice give a counter notice in writing that he or they as the case may be disputes the necessity of such underpinning or strengthening the question of the necessity shall be referred to the arbitration of an engineer to be agreed upon or in case of difference appointed at the instance of either party by the Board of Trade and the Arbitration Act 1889 shall apply to the reference :
- (4) The arbitrator shall forthwith upon the application of either party proceed to inspect such house or building and determine the matter referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and if so required

A.D. 1911.

by such owner lessee or occupier shall prescribe the mode in which the same shall be executed and the Company may and shall proceed forthwith so to underpin or strengthen the said house or building:

- (5) The Company shall be liable to compensate the owners lessees and occupiers of every such house or building for any inconvenience loss or damage which may result to them by reason of the exercise of the powers granted by this enactment:
- (6) If in any case in which any house or building shall have been underpinned or strengthened on the requisition of the Company such underpinning or strengthening shall prove inadequate for the support or protection of the house or building against further injury arising from the execution or use of the works of the Company then and in every such case unless such underpinning or strengthening shall have been done in pursuance of and in the mode prescribed by the referee the Company shall make compensation to the owners lessees and occupiers of such house or building for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof:
- (7) Nothing in this enactment contained nor any dealing with any property in pursuance of this enactment shall relieve the Company from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 or under any other Act:
- (8) Every case of compensation to be ascertained under this enactment shall be ascertained according to the provisions of the Lands Clauses Acts:
- (9) Nothing in this section shall repeal or affect the application of section 92 of the Lands Clauses Consolidation Act 1845.

Limits of
deviation of
railways.

33. In constructing the railways the Company may deviate laterally from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans.

For protec-
tion of Lan-
cashire and

34. The following provisions for the protection of the Lancashire Company shall unless otherwise agreed between the

Company and the Lancashire Company apply and have effect in relation to the Bradford Through Lines by this Act authorised:—

A.D. 1911.

Yorkshire
Railway
Company.

(1) Notwithstanding anything contained in this Act or shown upon the deposited plans or sections the Company shall not (except with the previous consent of the Lancashire Company under their common seal) enter upon take or use any lands or property of the Lancashire Company other than the lands numbered on the deposited plans 402 and 403 in the city and except as provided by the section of this Act of which the marginal note is "Running powers" but the Company may purchase and take and the Lancashire Company shall sell and grant accordingly an easement or right of using such of the lands of the latter company as may be necessary for the construction by this Act authorised of the junction of Railway No. 1 and the junction of Railway No. 2 with the railway of the Lancashire Company:

(2) The consideration to be paid for any land easement or right acquired by the Company under the last preceding subsection of this section shall in case of dispute be determined in the manner provided by the Lands Clauses Acts with respect to the purchase of lands otherwise than by agreement:

(3) The Company in constructing the railways and works by this Act authorised so far as the same adjoin or affect the railway lands or works of the Lancashire Company shall construct them in such lines within the limits of deviation shown upon the deposited plans as shall be reasonably approved by the principal engineer of the Lancashire Company (hereinafter referred to as "the said principal engineer") Provided always that if for the period of one month from the submission by the Company of proper plans sections and specifications and particulars showing the mode of construction proposed by the Company the said principal engineer shall fail to express his disapproval thereof he shall be deemed to have approved thereof:

(4) The junctions of Railways Nos. 1 and 2 with the railway of the Lancashire Company so far as they affect the running lines of the Lancashire Company and any

A.D. 1911.

signalling works in connection therewith shall if and when required by the Company be constructed by the Lancashire Company at the expense of the Company :

(5) All works affecting the railway lands or works of the Lancashire Company shall subject to the last preceding subsection be executed at the expense of the Company under the superintendence and to the reasonable satisfaction of the said principal engineer and according to plans sections and specifications to be previously submitted to and reasonably approved by him in writing Provided that if he shall not have expressed his approval or disapproval of the said plans sections and specifications within one month after the same shall have been submitted to him he shall be deemed to have approved thereof :

(6) In constructing and maintaining the said railways or either of them or any works by this Act authorised where the same affect the railways works or lands of the Lancashire Company the Company and their contractors and their respective servants agents or workmen shall take all reasonable precautions not to obstruct impede or interfere with the free and uninterrupted and safe user of the railways or other works of the Lancashire Company :

(7) The Company shall at all times maintain all the works affecting the Lancashire Company's railway in substantial repair and good order to the reasonable satisfaction in all respects of the said principal engineer and if and whenever the Company fail so to do the Lancashire Company may make or do as well in and upon the lands of the Company or the lands acquired by them for the purposes of this Act as their own lands all such works and things as such engineer may reasonably think requisite in that behalf and the sum from time to time certified by such engineer to be the reasonable amount of such their expenditure shall be paid to the Lancashire Company by the Company and in default of payment may be recovered in any court of competent jurisdiction Provided always that the Lancashire Company shall themselves maintain at the expense of the Company the said junctions of Railways Nos. 1 and 2 with the railways of the Lancashire

Company so far as they affect the running lines of the Lancashire Company and the signalling works in connection therewith : A.D. 1911.

- (8) The Company shall on demand pay to the Lancashire Company all reasonable expenses of the employment by them during the construction of any works affecting the Lancashire Company of a sufficient number of inspectors and watchmen to be appointed by the Lancashire Company for watching their said railway and works with reference to and during the execution of the works of the Company and for preventing as far as may be all interference danger and accident from any of the operations or from the acts and defaults of the Company or their contractors or any person or persons in the employment of the Company or their contractors with reference thereto or otherwise :
- (9) If at any time hereafter the Lancashire Company shall be desirous of using lands now belonging to them for the purpose of extending widening or altering their railways or works the Company shall give to the Lancashire Company all proper and reasonable facilities for that purpose notwithstanding any easement which the Company may have acquired from the Lancashire Company for the purposes of the said junctions :
- (10) The Company shall be responsible for and make good to the Lancashire Company all costs losses damages and expenses occasioned to the Lancashire Company or to their said railway or any other of their works and property or to the traffic on the said railway or to any company or person using the same or to any employees of the Lancashire Company during the construction or by reason of the failure of the works by this Act authorised or any works in connection therewith or by any act or omission of the Company or their contractors or of any person in their respective employment and the Company shall effectually indemnify and hold harmless the Lancashire Company from all claims and demands upon or against them by reason of any such construction or failure or of any such act or omission as aforesaid :

A.D. 1911.

(11) If any difference shall arise between the Company and the Lancashire Company or their respective engineers under the preceding provisions of this section such difference shall unless otherwise provided for by this section be referred to and determined by an engineer to be mutually nominated by the parties or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either of the said companies after notice thereof in writing to the other and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference.

Running
powers.

35.—(1) The Company may run over and use with their engines carriages and wagons officers and servants and for the purposes of traffic of every description other than traffic arising at or destined for any place thereon—

So much of the Lancashire Company's railway as lies between the junction at Thornhill of the Thornhill Junction Railway authorised by the Midland Railway Act 1899 with the railway of the Lancashire Company and the point of commencement of Railway No. 2 (Bradford Through Lines) by this Act authorised;

together with such apparatus works and conveniences on or connected with the said portion of railway as may be necessary for the purpose of such traffic and the Company may as regards such traffic demand and take upon and in respect of the said portion of railway the same rates and charges as the Lancashire Company are entitled to demand and take for the like traffic.

(2) The terms conditions and regulations to be observed and fulfilled and the tolls charges rent or other considerations to be paid by the Company for and in respect of the use of the said portion of railway and such apparatus works and conveniences as aforesaid shall be such as may be agreed upon between the Company and the Lancashire Company.

(3) In running over and using the said portion of railway in accordance with the provisions hereinbefore contained the regulations and byelaws for the time being in force on the railway so used shall be at all time observed so far as such regulations and byelaws shall be applicable,

36. The Company may stop up so much of the public footpath in the parish of All Saints in the city of Hereford which leads from Canon Moor across the sidings and property of the Company and across the Great Western Railway to Canon Moor Street as lies between its junction with the public footpath from Canon Moor to Portland Street at a point thirty-five yards or thereabouts south-east of Canon Moor Farm and the eastern boundary of the Great Western Railway Company's property at the western end of Canon Moor Street and thereupon all rights of way over that portion of the public footpath shall be extinguished but such portion of the public footpath shall not be stopped up except so far as the Company or the Great Western Railway Company are owners in possession of all lands on both sides thereof except so far as the owners lessees and occupiers of those lands may otherwise agree and the Company or the Great Western Railway Company as the case may be may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of footpath so stopped up so far as the same is bounded on both sides by lands of the Company or the Great Western Railway Company as the case may be :

A.D. 1911.
Power to stop up portion of public footpath in city of Hereford.

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

37. Subject to the provisions of this Act the Company in addition to the other lands which they are by this Act authorised to acquire may enter upon take use and appropriate for the purposes of extending their stations sidings warehouses engine sheds workshops coal wharves depôts mineral goods and other works and conveniences for the accommodation of their traffic and for providing accommodation for persons belonging to the working class who may be displaced in executing the powers of this Act or any other Act relating to the Company and for other purposes connected with their undertaking all or any of the lands following delineated on the deposited plans thereof and described in the deposited books of reference relating thereto (that is to say) :—

Power to Company to acquire lands for general purposes.

A.D. 1911.

Kirkby-in-Ashfield.

In the county of Nottingham—

Lands in the parish and urban district of Kirkby-in-Ashfield on the east side of and adjoining the Company's railway from Nottingham to Mansfield at or near the northern end of the Kirby-in-Ashfield Station thereon:

In the county of Leicester—

Knighton.

Lands in the parish and county borough of Leicester on the west side of and adjoining the Company's railway from Wigston to Leicester and on the south side of and adjoining Knighton Fields Road West;

Moir.

Lands in the parish and urban district of Ashby Woulds and the parish and urban district of Ashby-de-la-Zouch lying on the south-east side of and adjoining the Company's railway from Leicester to Burton between points 2 chains or thereabouts and 30 chains or thereabouts measured in a north-easterly direction from the bridge carrying the public road from Blackfordby to Measham over the said railway;

Swannington.

Lands in the parish of Swannington in the rural district of Ashby-de-la-Zouch lying between and adjoining the Company's railway from Leicester to Burton and the Swannington incline at or near the junction of the said incline with the said railway.

Power to
Midland
and Great
Northern
Railways
Joint Com-
mittee to
acquire
lands.

38. Subject to the provisions of this Act the Midland and Great Northern Railways Joint Committee may enter upon take use and appropriate and may hold for the purposes of or connected with their undertaking the lands following or some of them delineated on the deposited plans and described in the deposited books of reference relating thereto (that is to say):—

In the county of Norfolk—

Lands in the parishes of Thursford and Briningham in the rural district of Walsingham lying on both sides of and adjoining the railway of the said committee from Lynn to Melton Constable and north of and near to the public road from Thursford to Swanton Novers and to the east of the point where the said public road crosses the said railway by a level crossing:

In the county of Northampton and Soke of Peterborough—

Lands in the parishes of Paston and Eye in the rural district of Peterborough lying on both sides of and

adjoining the railway of the said committee from A.D. 1911.
 Peterborough to Sutton Bridge and to the south of
 and near and in part adjoining the works of the
 Star Pressed Brick Company.

39. Subject to the provisions of this Act the Cheshire Lines Committee may stop up and discontinue so much of the occupation road and public footpath in the parish and borough of Widnes in the county of Lancaster leading from Farnworth to Appleton in the said borough of Widnes as lies between a point where the said occupation road and public footpath crosses the northern boundary fence of the said committee's property over the Farnworth Tunnel and a point on the said occupation road and public footpath $1\frac{1}{2}$ chains or thereabouts measured along the said occupation road and public footpath in a southerly direction from the southern boundary fence of the said committee's property and in lieu thereof may make a new occupation road and public footpath between the said points and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference relating thereto as may be required for that purpose.

Power to
Cheshire
Lines Com-
mittee to
divert foot-
path in
borough
of Widnes.

40. Notwithstanding anything contained in this Act or shown on the deposited plans in relation thereto the following provisions for the protection and benefit of the mayor aldermen and burgesses of the borough of Widnes (in this section called "the corporation") shall except in so far as may be otherwise agreed between the corporation and the Cheshire Lines Committee (in this section called "the committee") apply and have effect (that is to say):—

For protec-
tion of cor-
poration of
Widnes.

- (1) Before the committee shall stop up and discontinue any part of the occupation road and public footpath in the borough of Widnes in the county of Lancaster mentioned in the section of this Act of which the marginal note is "Power to Cheshire Lines Committee to divert footpath in borough of Widnes" they shall make the new occupation road and public footpath from the point A to the point B shown on the deposited plans and shall carry the same over the railway by means of a bridge of not less width than twelve feet between the parapets and shall carry out at their own cost the necessary works consequent thereon or in connection therewith and they

A.D. 1911.

shall provide in and as part of the said bridge two continuous sunk trenches or pockets fourteen inches wide by eleven and a half inches deep for carrying any gas and water mains and pipes which the corporation may desire to lay therein and as shown upon the plan signed in duplicate by Isaac Carr as representing the corporation and Harry Blundell as representing the committee. The said bridge and the parapets thereof together with the surface of the roadway thereover shall at all times after the construction thereof be maintained by and at the expense of the committee to the reasonable satisfaction of the corporation :

(2) The corporation may at any time after the passing of this Act and from time to time on giving the committee one month's notice thereof lay and for ever thereafter maintain to the reasonable satisfaction of the engineer of the committee in and over the said bridge and railway gas and water mains and pipes together with all necessary works and conveniences :

(3) The corporation may at any time after the passing of this Act on giving the committee one month's notice thereof construct and make a sewer of not more than eighteen inches internal diameter over the railway at adjoining or near to the said bridge together with all necessary supports and all other requisite works and conveniences and with such materials and in such manner generally as the corporation shall in their reasonable discretion think fit. The construction and making of the said sewer supports works and conveniences shall be executed according to plans and sections to be previously submitted to and reasonably approved of by the committee and under the superintendence of the engineer of the committee if the same be given and to his reasonable satisfaction and the corporation shall comply with all reasonable requirements of the engineer of the committee in regard to such construction. Provided that if the committee fail to signify their approval or disapproval or to state their requirements in respect to such plans within twenty-eight days after the deposit thereof at

the office of the engineer of the committee they shall be deemed to have approved thereof The said sewer together with the supports works and conveniences connected therewith shall at all times be maintained in an efficient state of repair by the corporation at their own cost and to the reasonable satisfaction of the engineer of the committee and so as in no way to interfere with the railway of the committee or the traffic passing thereover: A.D. 1911.

- (4) On the completion by the corporation of the construction and making of the sewer supports works and conveniences referred to in the last preceding subsection hereof the surveyor to the corporation shall certify what the total cost of such construction and making has been and shall also estimate what the cost of the construction of such sewer in the like position would have been if the same had been constructed and made in the land as it existed prior to the thirtieth day of November one thousand nine hundred and ten and a copy of such certificate and estimate shall be forwarded by the corporation to the committee and in the event of the total of such first-named cost exceeding the total of such second-named cost the committee shall pay to the corporation one-half of the difference and if any dispute shall arise as to the amount to be paid under this subsection the same shall be referred to arbitration under the provisions of subsection (7) of this section:
- (5) The committee shall give and grant to the corporation free of charge such easements as shall be necessary for or required in connection with the laying construction and making and maintenance of the mains pipes and sewer in this section before mentioned:
- (6) The corporation shall not be liable for and shall be indemnified by the committee against all damage and injury which may be caused to the railway or works of the committee and the traffic thereon and the persons and property being conveyed on or using such railway by the breaking bursting or leaking of or escape from the sewer hereinbefore mentioned water gas or other mains pipes works or apparatus belonging to or under the control of the corporation

A.D. 1911.

by reason of the failure of or any accident upon or in connection with any of the works executed by the committee under the powers of this Act:

- (7) Any dispute or difference which may arise between the corporation and the committee with reference to the provisions of this section or in any way arising thereout shall be settled by arbitration by an engineer or other fit person to be appointed in default of agreement by the President of the Institution of Civil Engineers on the application of either party and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Power to
Cheshire
Lines Com-
mittee to
acquire
additional
lands.

41. Subject to the provisions of this Act the Cheshire Lines Committee in addition to the other lands which they are by this Act authorised to acquire may enter upon take use and appropriate and may hold for the purposes of or connected with their undertaking the lands following or some of them delineated on the deposited plans and described in the deposited books of reference relating thereto (that is to say):—

In the county of Lancaster—

Lands in the township or parish of South Manchester in the city of Manchester situate upon the eastern side of the said committee's property and extending from a point $6\frac{1}{2}$ chains or thereabouts south of the abutments of the bridge carrying Manchester Road over the railway of the said committee to the bridge carrying Stamford Road over the said railway;

Lands in the said township or parish and city adjoining the eastern side of the said committee's railway and extending from the said Stamford Road to a point measured along the eastern boundary fence of the said committee's property 9 chains or thereabouts south-east of the said Stamford Road;

Lands in the said township or parish and city adjoining the north-eastern side of the said committee's railway extending from the bridge carrying Wilbraham Road over the said railway to the bridge carrying the occupation road over the said committee's railway at the Chorlton-cum-Hardy Junction of the said committee's railway;

Lands in the said township or parish and city adjoining the northern boundary of the said committee's railway extending from the said bridge carrying the occupation road over the said committee's railway at Chorlton-cum-Hardy Junction to a point measured along the northern boundary fence of the committee's railway 4 chains or thereabouts east of the said occupation road. A.D. 1911.

42. Subject to the provisions of this Act the new footpaths and diversions of footpaths to be made under the authority of this Act shall when made and completed be repaired and maintained by and at the expense of the same parties in the same manner and to the same extent as other footpaths of a similar nature within the parish in which any such footpath will be situate are from time to time liable to be repaired or maintained. Provisions as to repair of footpaths.

43. Where this Act authorises the diversion of a public footpath and the stopping up of an existing public footpath or any portion thereof such stopping up shall not take place until the new portion of footpath is completed to the satisfaction of the road authority and is open for public use or in case of difference between the Company or the Cheshire Lines Committee as the case may be and the road authority until two justices shall have certified that the new footpath has been completed to their satisfaction and is open for public use. Stopping up footpaths in case of diversion.

Before applying to the justices for their certificate the Company or the Cheshire Lines Committee as the case may be shall give to the road authority seven days' notice in writing of their intention to apply for the same.

As from the completion of the new footpath to the satisfaction of the road authority or as from the date of the said certificate as the case may be all rights of way over or along the existing footpath or portion thereof shall be extinguished and the Company or the Cheshire Lines Committee as the case may be may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of footpath stopped up as far as the same is bounded on both sides by lands of the Company or the Cheshire Lines Committee as the case may be:

Provided that the Company or the Cheshire Lines Committee as the case may be shall make full compensation to all parties interested in respect of any private rights of way

A.D. 1911. — extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

As to private rights of way over lands taken compulsorily.

44. All private rights of way over any lands which are under the powers of this Act authorised to be acquired compulsorily shall as from the date of their acquisition be extinguished. Provided that the Company or the Midland and Great Northern Railways Joint Committee or the Cheshire Lines Committee as the case may be shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Period for compulsory purchase of lands.

45. The powers granted by this Act for the compulsory purchase of lands shall cease after the expiration of three years from the passing of this Act.

Persons under disability may grant easements &c.

46. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company the Midland and Great Northern Railways Joint Committee or the Cheshire Lines Committee as the case may be any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Owners may be required to sell parts only of certain properties.

47. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto. Therefore the following provisions shall have effect:—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the Second Schedule to this Act and whereof a portion

only is required for the purposes of the Company or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties":

- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed:
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:

A.D. 1911.

- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Power to
acquire
easements
for con-
structing
tunnels.

48. And whereas the Swansea King's Dock Line (Railway No. 1) and the Bradford Through Line (Railway No. 1) by this Act authorised are shown on the deposited plans and sections as intended to be constructed in tunnel through or under the

properties referred to in the Third Schedule to this Act at a depth of forty feet and upwards between the crown of the tunnel and the surface of the ground. Therefore the Company may purchase and acquire an easement or right of constructing and using those railways through or under those properties without being obliged to purchase the land over such railways or any houses buildings manufactories or premises thereon respectively unless the jury or the arbitrators or their umpire to whom the question of disputed compensation shall be submitted shall determine that such right or easement cannot be acquired or used by the Company without material detriment to such properties. Provided that nothing in this section contained shall apply to any of the said properties the surface of which is at a less height than forty feet above the crown of the said tunnel as the same shall be constructed. Provided also that nothing in this section contained nor any dealing with any of the said properties in pursuance thereof shall relieve the Company from liability to compensation under section 68 of the Lands Clauses Consolidation Act 1845 in respect of any properties through or under which the Company may purchase or acquire an easement or right of constructing and using such tunnel.

49. The period limited by the Cheshire Lines Act 1903 as extended by the Great Northern Railway Act 1906 and the Cheshire Lines Act 1908 for the compulsory purchase of lands for the purposes of the railways at Toxteth Park Liverpool authorised by the said Act of 1903 is hereby further extended for a period of two years from the twenty-first day of July one thousand nine hundred and eleven.

Extension
of time for
purchase of
lands for
railways at
Toxteth
Park Liver-
pool.

50. The period limited by the Cheshire Lines Act 1903 for the completion of the railways at Toxteth Park Liverpool by that Act authorised as extended by the Cheshire Lines Act 1908 is hereby further extended for a period of three years from the twenty-first day of July one thousand nine hundred and eleven and sections 22 and 23 of the said Act of 1903 shall be read and construed as if the period by this Act limited for the completion thereof had been the period limited by that Act.

Extension
of time for
completion
of railways
at Toxteth
Park Liver-
pool.

If the said railways be not completed within the said period of three years then on the expiration of that period the powers of the said Act of 1903 and this Act respectively granted to the Cheshire Lines Committee for making and completing the same or otherwise relating thereto shall cease except as to so much thereof as shall then be completed,

A.D. 1911.

Extension
of time for
purchase of
lands for cer-
tain railways
authorised
by Rother-
ham Maltby
and Laugh-
ton Railway
Act 1905.

51. The powers granted by the Rotherham Maltby and Laughton Railway Act 1905 as revived and extended by the Great Central Railway (Various Powers) Act 1909 for the compulsory purchase of lands for the purposes of Railways Nos. 1A 1B and 1C authorised by the said Act of 1905 are hereby further extended and may be exercised by the Great Central and Midland Joint Committee for a period of two years from the fourth day of August one thousand nine hundred and eleven.

Extension
of time for
completion
of certain
railways
authorised
by Rother-
ham Maltby
and Laugh-
ton Railway
Act 1905.

52. The period limited by the Rotherham Maltby and Laughton Railway Act 1905 for the completion of Railways Nos. 1A 1B and 1C by that Act authorised as extended by the Great Central Railway (Various Powers) Act 1909 is hereby further extended for a period of three years from the fourth day of August one thousand nine hundred and eleven and sections 35 and 36 of the said Act of 1905 shall be read and construed as if the period by this Act limited for the completion thereof had been the period limited by that Act.

If the said railways be not completed within the said period of three years then on the expiration of that period the powers of the said Act of 1905 the Midland Railway Act 1907 and this Act respectively granted for making and completing the same or otherwise relating thereto shall cease except as to so much thereof as shall then be completed.

For protec-
tion of Raw-
marsh Urban
District
Council.

53. For the protection of the Rawmarsh Urban District Council (in this section called "the council") the following provisions shall unless otherwise agreed in writing between the Great Central and Midland Joint Committee (in this section called "the committee") and the council apply and have effect (that is to say):—

- (1) The committee shall (subject to any necessary consents) continue and extend the diverted footpath referred to in section 34 of the Rotherham Maltby and Laughton Railway Act 1905 and shown upon the plans deposited in respect of the application for that Act from the bridge carrying Railway No. 2A authorised by the Act of 1905 over the River Don to the point marked A as shown on the plan signed by Charles Arthur Rowlandson on behalf of the committee and Rowland Allt on behalf of the council (in this section referred to as "the signed plan") and shall cover the same with a

layer of six inches of ashes and fence it along the southern side thereof to the reasonable satisfaction of the council. Provided that if any necessary consents shall not be forthcoming to the route hereinbefore provided for the said intended footpath the present line of the footpath shall be adhered to and covered with ashes as aforesaid but not fenced: A.D. 1911.

- (2) The committee shall also (subject to similar consents as aforesaid) similarly cover that portion of the diverted footpath between the two railway bridges over the River Don shown on the signed plan and shall raise the level of the footpath under the easternmost of the said bridges to a height of not less than two feet above its present level:
- (3) The committee shall (subject to similar consents) complete the fencing of the diverted footpath between the points marked respectively D and E (on the south side) C and F (on the west side) and G and B (on the south side) on the signed plan with post and rail timber fences of a character uniform with the existing fences:
- (4) All the works to be executed by the committee under this section shall be carried out and completed within six months of the passing of this Act to the reasonable satisfaction of the council and on the completion thereof the council shall take over the diverted footpath and fences and maintain the same and the committee shall from time to time pay to the council on demand one-fifth part of the cost of such maintenance:
- (5) If any difference shall arise between the committee and the council with respect to any matter under this section the same shall be determined by an arbitrator to be appointed failing agreement on the application of either party after notice to the other by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to such arbitration.

54. The agreement dated the sixteenth day of July one thousand nine hundred and ten and made between the Hull and Barnsley Railway Company of the first part the Great Central

Confirming
agreement
with Hull
and Barnsley

A.D. 1911.

and Great
Central
Railway
Companies.

Railway Company of the second part and the Company of the third part as set forth in the Fourth Schedule to this Act is hereby confirmed and made binding upon all the parties thereto.

Confirming
agreement
with London
and South
Western and
Metropolitan
District
Railway
Companies.

55. The agreement dated the eighth day of July one thousand nine hundred and ten and made between the Company of the first part the London and South Western Railway Company of the second part and the Metropolitan District Railway Company of the third part as set forth in the Fifth Schedule to this Act is hereby confirmed and made binding upon all the parties thereto.

Confirming
agreement
with Metro-
politan Dis-
trict Railway
Company.

56. The agreement dated the twelfth day of April one thousand nine hundred and eleven and made between the Company of the one part and the Metropolitan District Railway Company of the other part as set forth in the Sixth Schedule to this Act is hereby confirmed and made binding on the parties thereto.

Agreements
with Swan-
sea Harbour
Trustees.

57. The Company on the one hand and the Swansea Harbour Trustees on the other hand may enter into and carry into effect agreements with reference to the granting by the said trustees to the Company of leases of certain lands of the said trustees at Swansea and with reference to the provision and construction by the Company and the trustees or either of them on lands of either of them or any lands leased to the Company as aforesaid of works and appliances in connection with or for the purposes of the respective undertakings of the Company and the said trustees.

Company
may apply
corporate
funds.

58. The Company may apply for or towards all or any of the purposes of this Act to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of their Acts and which are not required for the purposes to which they are by those Acts made specially applicable.

Power to
other com-
panies and
committees
to apply
funds.

59. The Midland and Great Northern Railways Joint Committee the Cheshire Lines Committee the Great Northern Railway Company and the Great Central Railway Company respectively may apply to the purposes of this Act in which they are respectively interested and to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of their Acts and which are not required for the purposes to which they are by those Acts made specially applicable.

60. And whereas lands have from time to time been purchased or acquired by the Company and by joint committees incorporated by Act of Parliament on which the Company may be represented adjoining or near to railways or stations belonging to the Company or belonging to or managed by such a joint committee but such lands are not immediately required for the purposes of the undertaking of the Company or of such joint committee as the case may be and it is expedient that further powers should be conferred upon the Company and such joint committees respectively with respect to such lands Therefore notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 or in any Act relating to the Company or any such joint committee with which that Act is incorporated the Company or any such joint committee shall not be required to sell or dispose of any such lands or any lands acquired under the powers of this Act which may not be immediately required for such purposes but may retain hold or use or may lease or otherwise dispose of the same.

A.D. 1911.

Power to
lease lands
&c.

61. Nothing in this Act contained shall exempt any of the companies or committees upon whom powers are conferred by this Act or their respective railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the said companies or committees respectively.

Provision
as to general
Railway
Acts.

62. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of Act.

A.D. 1911.

The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

Stamp.

Ten
shillings.

AGREEMENT made the seventh day of March one thousand nine hundred and eleven between the MIDLAND RAILWAY COMPANY (hereinafter called "the Company") of the one part and the LORD MAYOR ALDERMEN AND CITIZENS OF THE CITY OF BRADFORD (hereinafter called "the Corporation") of the other part.

WHEREAS by the Midland Railway (West Riding Lines) Act 1898 the Company were authorised to construct certain railways extending from a point on their existing line at Royston through the city of Bradford to connect at Bradford with the Company's main line of railway from Bradford to the north viâ Shipley and to form a direct line north and south through Bradford such railways being locally known as "the Bradford Through Line":

And whereas the Company acquired the lands for and have constructed part of the railways authorised by the said Act of 1898 and as to the other part (being the lines through the Spen Valley and through the city of Bradford) the time limited by the said Act of 1898 for the compulsory purchase of lands therefor and for the construction thereof has since been extended:

And whereas by the Midland Railway Act 1907 subsections (4) (5) (6) (7) (8) (9) (10) and (11) of section 28 of the Midland Railway (West Riding Lines) Act 1898 were repealed and by section 20 of the Act of 1907 the Company were authorised to make and maintain a diversion of Bradford Beck and other works mentioned in such section:

And whereas by an agreement dated the fifteenth of February one thousand nine hundred and seven made between the Company of the first part the corporation of the second part Sir Frederick Ripley Henry Ripley and Hugh Ripley of the third part and James Sharp William Henry Foster and the said Henry Ripley and the Bradford Dyers Association Limited of the fourth part the corporation agreed to undertake certain responsibilities for the supply of water to the parties of the third and fourth parts of the said agreement and further agreed

that in certain events the rating required under the Lands Clauses Consolidation Act during the construction of works should be suspended for six years from the commencement of the work : A.D. 1911.

And whereas the Company have informed the corporation that they have come to the conclusion that the line of railway authorised by the said Act of 1898 cannot be properly constructed by the Company and the Company and the corporation have agreed that the Company should endeavour to obtain powers for the construction of a line in lieu of and in substitution for the line authorised by the said Act of 1898 and which will if arrangements are made with the Lancashire and Yorkshire Railway Company afford somewhat similar facilities at a less cost the corporation assisting the Company financially and otherwise in the manner hereinafter set forth and which the corporation are desirous of doing in the interests of the city to secure the construction and completion of the Bradford through route the new proposals being inter alia more advantageous to the city than the railways authorised by the said Act of 1898 as modified by the said Act of 1907 :

Now it is hereby mutually agreed between the parties hereto as follows :--

1. The Company shall in the next session of Parliament promote a Bill with the objects amongst others particularised in the next clause of this agreement and the corporation and the Company shall use their best endeavours to secure the passage of such Bill into an Act.

2. The Bill to be promoted by the Company shall authorise—

- (A) The abandonment of so much of the powers conferred on the Company by the Act of 1898 and section 20 of the Act of 1907 as have not at present been exercised ;
- (B) The construction of the railways as approximately shown on the plan hereto annexed ;
- (c) The confirmation of this agreement ;
- (D) Conferring such powers on the Company and the corporation respectively as may be necessary to carry out this agreement.

3. If and so soon as the Bill to be promoted by the Company shall have passed into an Act and an arrangement satisfactory to the Company shall have been come to with the Lancashire and Yorkshire Railway Company the Company will proceed with all reasonable speed with the construction of such railway.

4. The provisions of section 133 of the Lands Clauses Consolidation Act 1845 shall not from the commencement to the completion of the works apply to or in respect of any lands taken or acquired by the Company in the said city for the purposes thereof.

A.D. 1911.

5. In consideration of the advantages to the said city and the public which will accrue from the opening of a through route north and south viâ the city from and after the completion of the said works for a period of twenty years there shall be deducted from the rates levied in respect of the property in the said city to which the Company are for the time being assessed in addition to all statutory deductions such further sums as will in each year of the said period amount to eight thousand pounds.

6. The Company and the corporation agree to the various street closings engineering arrangements and works set out in the schedule hereto and the Company agree as necessary to convey and dedicate to the public any of the lands as mentioned in such schedule.

7. The Company shall construct the said railway (unless otherwise agreed with the corporation) between Wakefield Road and the north side of Forster Square substantially on the line shown upon the said plan. From Leeds Road to the north side of Forster Square it shall be constructed as a viaduct. That portion of the viaduct which will be constructed over Forster Square shall be specially designed so as to be in keeping with the surroundings and the design of the elevations of the whole viaduct carrying the said railway through the said city where it crosses or abuts upon any public thoroughfare shall be submitted to and reasonably approved by the corporation before the construction of the said railway is commenced. Viaduct arches constructed by the Company shall not be let or used for any purpose which will be likely to cause a nuisance or be detrimental to the letting or user of the surrounding property.

8. The Bill shall contain provisions imposing on the corporation obligations in respect of water and works in favour of the parties of the third and fourth parts to the said agreement of the fifteenth day of February one thousand nine hundred and seven similar to the provisions imposed on the corporation under the said agreement.

9. Any difference which may arise between the corporation and the Company as to the true intent and meaning of any of the provisions of this agreement or as to the mode of giving effect thereto shall (unless otherwise agreed upon) be settled by an engineer to be appointed upon the application of either party by the President of the Institution of Civil Engineers.

10. It is hereby further agreed that if the Committee of either House of Parliament to whom any Bill to be promoted as aforesaid by the Company shall stand referred shall make any material alteration in the terms hereof it shall be competent to either of the parties to withdraw this agreement.

In witness whereof the corporation and the Company have caused their respective common seals to be hereunto affixed the day and year first above written. A.D. 1911.

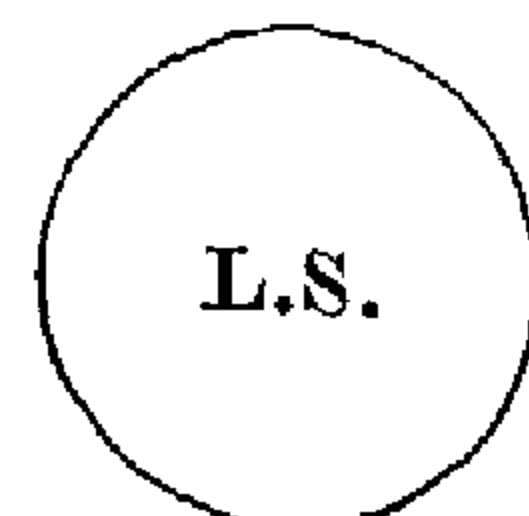
The common seal of the lord mayor aldermen and citizens of the city of Bradford was hereunto affixed in the presence of

JACOB MOSER

Lord Mayor.

FREDERICK STEVENS

Town Clerk.



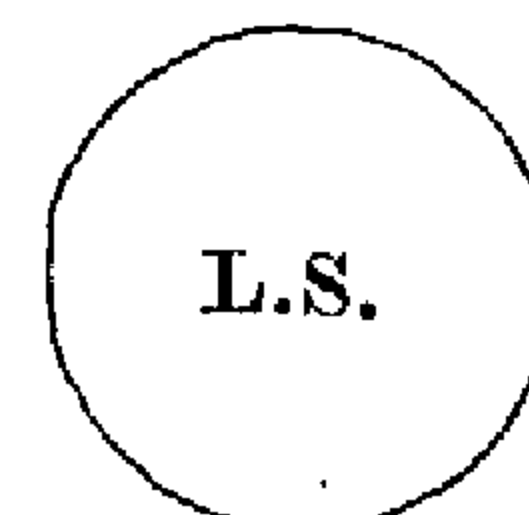
The common seal of the Midland Railway Company was hereunto affixed in the presence of

JAMES W. OXLEY

Director of the Company

Spenfield

Weetwood near Leeds.



No. 16087.

THE SCHEDULE.

Woodlands Farm — footpath near. To be duly provided for by the Company.

Ripleyville — footpath — new road. Instead of proposed diversion of footpath Company to leave sufficient land for a ten-yards road from Mill Lane to Ripley Terrace (St. Dunstan's) road to be made by the corporation if so desired for use as a public cartway.

When land abutting developed for building or business purposes Company to submit plans and construct in conformity with street building regulations.

Diamond Street—bridge - Width over railway to be forty-eight feet between parapets level of road being raised not more than twelve inches if necessary.

Corporation to maintain road surface notwithstanding raising after Company have satisfactorily paved and make good surface.

A.D. 1911. Great Cross Street—closing—
— foot subway.

Street to be stopped for width of rail-
way Foot subway to be constructed
by Company To be ten feet clear
span Corporation to lower surface
of street if they require a headway
exceeding seven feet.

George Street and Eastbrook
Lane—closing—footbridge.

Streets to be closed for width of rail-
way A footbridge over railway with
access from both Eastbrook Lane and
George Street to be constructed by
Company To be nine feet clear
between the parapets and approached
by steps.

Street from Eastbrook Lane
to back Ebenezer Street.

Company to provide the land for a five
yards street Corporation to make the
street.

Vicar Lane—bridge - -

Headway to be fifteen feet throughout
over carriage-way.

Leeds Road—bridge - -

To be sixty feet span between abut-
ments on the square Spans to be
divided into three by three columns
on each kerb line the columns not to
be of greater size than reasonably
necessary Minimum headway over
the tram lines to be not less than
seventeen feet six inches Land for
the widening of Leeds Road to the
extent bridged over to be thrown to
the road by the Company without
payment Paving to be done by
corporation.

West Street -
Brown Street - } Closing
Ship Alley - }
Watkins Alley }

- To be closed.

Bentley Street—closing—sewer

To be closed but main sewer under to
be preserved by Company and full
access given by them to corporation
at all times hereafter to maintain
alter repair or renew same.

Hall Ings—bridge -

To be sixty feet span Headway to be
not less than seventeen feet six
inches.

Land for widening to extent bridged
over to be thrown to the road by the

- Hall Ings—bridge—*cont.* Company without payment Paving A.D. 1911.
to be done by corporation.
- Swaine Street—bridge - To be sixty feet span Headway to be
not less than seventeen feet six
inches.
Land for widening to extent bridged
over to be thrown to the road by the
Company without payment.
Paving to be done by corporation.
Corporation to pay the Company
an agreed sum as a compounded
amount representing the additional
cost of superstructure and maintenance
of the bridge beyond forty-two feet.
- Brook Street (continuation) - Street to be continued into Forster
Square thirty feet wide as provided
for in agreement of the seventh day
of March one thousand eight hundred
and ninety-eight between the Company
and the corporation.
- Forster Square—crossing - To be bridged over at a clear height
above the tram rails of not less than
eighteen feet by one span.
Structure to be dealt with generally
as hereinbefore in the agreement
referred to.
The southern abutment to be set
back to a line parallel with and one
hundred and twenty-seven feet three
inches or thereabouts (measured on
the square) from the frontage line of
the existing Midland Station.
- Valley Road and Mill Street—
closing and alteration. Valley Road to be closed between Canal
Road and School Street Mill Lane
to be widened to forty-eight feet as
provided for in agreement of seventh
day of March one thousand eight
hundred and ninety-eight between
the Company and the corporation.
- School Street—alteration - Instead of proposed stoppage street to
be retained and altered by Company
in level with gradient not worse than
present At junction with Valley Road
the School Street diversion may
encroach on existing west side of

A.D. 1911. School Street — alteration —
cont.

Valley Road but only so as to leave that portion of Valley Road of the same width as it is at the junction with North Holme Street.

All street paving and works in the alteration of School Street to be carried out at the expense of the Company.

Salem Street - }
Hallfield Street } Closing

Streets to be closed within limits of deviation shown on deposited plans
Main sewers to be preserved or altered to reasonable satisfaction of the city engineer and access given to corporation at all times hereafter to repair maintain and renew.

Snowden Street—footbridge -

Footbridge over railway to remain open and levels to be altered by Company as necessary.

The corporation to give the Company all reasonable facilities for construction and working of temporary railways over the tunnel and over and across streets and also as far as possible to give facilities on reasonable terms for the tipping of spoil from the tunnel works and for the construction of shafts on land of the corporation provided it shall not interfere with purposes for which the land has been acquired and is held and providing the Company do all necessary trimming to the satisfaction of the corporation and the corporation are not put to any expense.

SECOND SCHEDULE.

DESCRIBING PROPERTIES OF WHICH PARTS ONLY ARE REQUIRED
TO BE TAKEN BY THE COMPANY.

Nos. on deposited Plans.	Parish or other Area.	Description of Property.
SWANSEA KING'S DOCK LINES RAILWAY No. 1.		
170	Parish of Llansamlet -	Disused canal.
172	Ditto -	Disused canal.
184	Ditto -	Field and bog.
191	Ditto -	Lands sidings and weighing machine.

A.D. 1911.

Nos. on deposited Plans.	Parish or other Area.	Description of Property.
--------------------------	-----------------------	--------------------------

BRADFORD THROUGH LINES RAILWAY NO. 1.

28	Urban District of Cleckheaton.	Field.
29	Ditto - -	Garden and outbuildings.
32	Ditto - -	Farmhouse stables yards and outbuildings.
40	Ditto - -	Public-house yard garden and outbuildings ("Richardson's Arms").
41	Ditto - -	Coachhouse stables yard and outbuildings.
5	City and county borough of Bradford.	School yard and outbuildings.
395	Ditto - -	Yard.
409	Ditto - -	Warehouses and offices.
413	Ditto - -	Warehouses offices and yard.
416	Ditto - -	Warehouses and offices.
417	Ditto - -	Warehouses and offices.
428	Ditto - -	Warehouses and offices.
430	Ditto - -	Warehouses and offices.
440	Ditto - -	Shop offices and watercourse (Bradford Beck).
481	Ditto - -	Land reservoir subway and conduit.

BRADFORD THROUGH LINES RAILWAY NO. 2.

11	Urban district of Cleckheaton	Field and disused colliery shaft.
28	Ditto - -	Field.
29	Ditto - -	Garden and outbuildings.
32	Ditto - -	Farmhouse stables yards and outbuildings.
47	Ditto - -	Farmhouse yard and garden.
48	Ditto - -	Stable yard garden and outbuildings.
49	Ditto - -	Garden.
50	Ditto - -	Field watercourse and footpath.

THIRD SCHEDULE.

PROPERTIES UNDER WHICH AN EASEMENT ONLY IS REQUIRED TO BE TAKEN.

Parish or other Area.	Numbers on deposited Plans.
-----------------------	-----------------------------

SWANSEA KING'S DOCK LINES RAILWAY NO. 1.

Parish of Llansamlet - - - -	Nos. 16 to 79 inclusive.
------------------------------	--------------------------

A.D. 1911.

Parish or other Area.	Numbers on deposited Plans.
BRADFORD THROUGH LINES RAILWAY No. 1.	
City and county borough of Bradford	- Nos. 26 to 192 inclusive.

FOURTH SCHEDULE.

Stamp.

Ten
shillings.

AN AGREEMENT made the sixteenth day of July one thousand nine hundred and ten between THE HULL AND BARNSELY RAILWAY COMPANY (hereinafter called "the Hull and Barnsley Company") of the first part THE GREAT CENTRAL RAILWAY COMPANY (hereinafter called "the Great Central Company") of the second part and THE MIDLAND RAILWAY COMPANY (hereinafter called "the Midland Company") of the third part.

WHEREAS by the Hull and Barnsley Railway Act 1909 the Hull and Barnsley Company were authorised to construct a railway from Gowdall to Braithwell utilising as part of that railway part of Railway No. 2 authorised by their Act of 1902 and by the said Act of 1909 the Great Central Company were given an option of acquiring a third share in such line (which option has since been exercised) and provision was made for the constitution of a joint committee and the transfer to such joint committee of the powers of constructing such line and by section 50 of the said Act the Midland Company were granted running powers and facilities over the proposed line:

And whereas by the Great Central Railway (Various Powers) Act 1909 the Great Central Company obtained power to make two short railways in the Act and hereinafter referred to as Railways Nos. 5 and 6 and by section 23 of the Act running powers over the proposed Railways Nos. 5 and 6 were granted to the Midland Company:

And whereas the Great Central Company are in the present session of Parliament promoting the Great Central Railway Bill whereby powers are intended to be conferred upon the Hull and Barnsley Company and the Great Central Company to construct a short railway (in the Bill and hereinafter referred to as Railway No. 3) near Warmsworth by means of which together with part of Railway No. 5 and Railway No. 6 access to the Edlington Colliery will be obtained over the said Hull and Barnsley line from Gowdall to Braithwell:

And whereas it is sought to be enacted that Railway No. 3 shall form part of the joint undertaking of the Hull and Barnsley and Great Central Companies and that such joint undertaking shall be vested in the two companies in equal shares : A.D. 1911.

And whereas the Midland Company presented a petition against the proposed Bill but agreed to withdraw the same in consideration of the insertion of a clause in the Bill of which the marginal note is "For the protection of the Midland Railway Company" and the completion of these presents :

Now it is hereby agreed as follows :—

1. The Midland Company may run over and use Railway No. 6 and so much of Railway No. 5 as lies east of the junction with Railway No. 3 on terms and conditions similar to those set out in section 50 of the Hull and Barnsley Railway Act 1909.

2. The railways authorised by the Hull and Barnsley Railway Act 1909 Railway No. 3 so much as aforesaid of Railway No. 5 and Railway No. 6 shall for all purposes of the Midland Company's user thereof be treated as one railway.

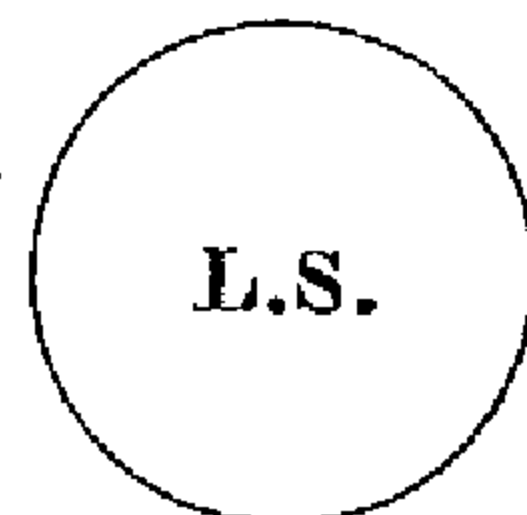
3. Any of the companies parties hereto may apply to Parliament to give legislative force to this agreement as a whole or to any portion thereof and the other companies parties hereto shall support such application.

4. This agreement is made subject to such alterations as Parliament may think fit to make therein but in the event of either House of Parliament making any material alteration therein it shall be in the option of the Midland Company or of the Hull and Barnsley Company and the Great Central Company acting together through the said joint committee to withdraw from the same by notice in writing to that effect and thereupon this agreement shall become void.

In witness whereof the companies parties hereto have respectively caused their common seals to be hereunto affixed the day and year first above written.

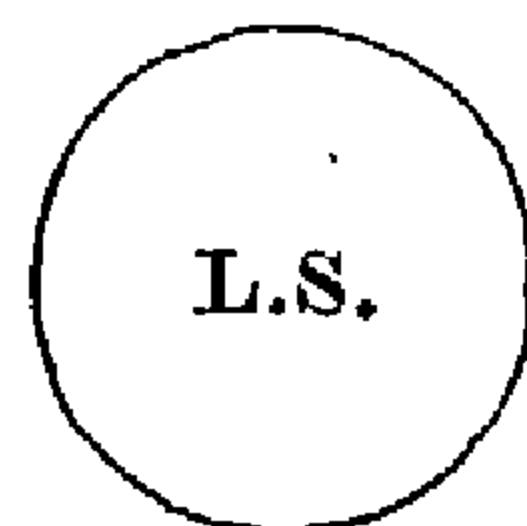
The common seal of the Hull and Barnsley
Railway Company was hereunto affixed in
the presence of

W. S. WRIGHT
Chairman.



The common seal of the Great Central Rail-
way Company was hereunto affixed in the
presence of

O. S. HOLT
Secretary.



A.D. 1911.

The common seal of the Midland Railway
Company was hereunto affixed in the
presence of

H. W. L. HARFORD
Director of the Company
Horton
Chipping Sodbury.

L.S.

FIFTH SCHEDULE.

Stamp.

Ten
shillings.

AN AGREEMENT made the eighth day of July one thousand nine hundred and ten between THE MIDLAND RAILWAY COMPANY (hereinafter called "the Midland Company") of the first part THE LONDON AND SOUTH WESTERN RAILWAY COMPANY (hereinafter called "the South Western Company") of the second part and THE METROPOLITAN DISTRICT RAILWAY COMPANY (hereinafter called "the District Company") of the third part.

SUPPLEMENTAL to an agreement made the first day of April 1876 made between the Midland Company of the one part and the South Western Company of the other part and also supplemental to an agreement made the 11th day of April 1910 between the District Company of the one part and the South Western Company of the other part:

Whereas the District Company are in the present session of Parliament promoting the Metropolitan District Railway Bill (hereinafter referred to as "the intended Act") whereby powers are intended to be conferred upon the South Western Company and upon the District Company for the construction of certain lines of railway therein mentioned (in the intended Act and herein respectively referred to as Railways Nos. 1 2 3 4 5 6 7 8 9 and 10) and shown upon the plan attached hereto extending between Acton Lane Junction and Galena Road a point to the east of Studland Road Junction and it is also intended to construct a cross-over road (herein referred to as "the Turnham Green cross-over") near the eastern end of the Turnham Green Station platform to connect the east-bound rails of Railway No. 7 with the east-bound rails of the southern lines of the South Western Company's railway:

And whereas the Midland Company presented a petition against the proposed Bill but agreed to withdraw the same in consideration of the completion of these presents:

Now it is hereby agreed as follows:

1. The South Western Company shall construct and open for traffic contemporaneously with Railways Nos. 1 2 3 4 5 6 7 8 9 and 10 the

Turnham Green cross-over which shall be so constructed and equipped with signalling apparatus so designed that the trains of the Midland Company on leaving Acton Lane Junction may be run without stopping into Turnham Green Station. A.D. 1911.

2. So soon as the Turnham Green cross-over and the railways by the intended Act authorised are completed and opened for traffic the Midland Company may run over work and use with their engines carriages and wagons of every description and their officers and servants in charge of engines and trains—

(A) Railway No. 1 and the portion of Railway No. 2 situate between the termination of Railway No. 1 and the termination of Railway No. 2 and also Railways Nos. 4 5 6 8 9 and 10 and the existing double lines of the South Western Company's railway between the termination of Railways Nos. 2 and 5 near Turnham Green Terrace and the commencement of Railway No. 10 near Studland Street as such existing double lines of railway will be varied by the construction of Railways Nos. 6 8 and 9;

(B) And also for the purposes of their east-bound traffic (i) so much of Railways Nos. 3 and 7 as lies between the commencement of Railway No. 3 near Acton Lane and the cross-over road next mentioned and (ii) the Turnham Green cross-over road to be constructed near the eastern end of the Turnham Green Station platform to connect the east-bound rails of Railway No. 7 with the east-bound rails of the southern lines of the South Western Company's railway.

3. The Midland Company shall be entitled to exercise at all times and from time to time the running powers conferred on them by this agreement either over the railways mentioned in subsection (A) of clause 2 or the railways mentioned in subsection (B) of clause 2 whichever they shall consider most convenient for their east-bound traffic.

4. The terms and conditions set out in the said agreement dated the first day of April 1876 shall apply to all the railways (including the Turnham Green cross-over road) referred to in clause 2 of this agreement and the said agreement shall hereafter be as binding on the District Company in respect to such of those railways as may belong to the District Company as if that company had originally been made a party thereto and the said agreement shall hereafter be read and construed as varied by this agreement.

5. For the purposes of division of traffic the distance between Acton South Junction being the junction between the North and South Western Junction Railway and the railway of the South Western Company at Acton and the point where Railway No. 9 by

A.D. 1911. the intended Act intended to be authorised forms an end-on junction with Railway No. 10 at Studland Road Junction shall hereafter continue to be taken as the distance now existing viz. 1 mile 77 chains and settlement in regard to traffic passing over the whole of the proposed and existing railways between those points whether belonging to the District Company or the South Western Company shall be made as heretofore between the South Western Company and the Midland Company unless and until otherwise mutually agreed between those two companies.

6. Any of the companies parties hereto may apply to Parliament to give legislative force to this agreement as a whole or any portion thereof and the other companies parties hereto shall support such application.

7. This agreement is made subject to such alterations as Parliament may think fit to make therein but in the event of either House of Parliament making any material alteration therein any party may withdraw the agreement.

In witness whereof the Midland Company the South Western Company and the District Company have hereunto caused their respective common seals to be affixed the day and year first above written.

The common seal of the Midland Railway Company was hereunto affixed in the presence of

H. W. L. HARFORD
Director of the Company
Horton
Chipping Sodbury.



The common seal of the London and South Western Railway Company was hereunto affixed in the presence of

GODFREY KNIGHT
Secretary.



The common seal of the Metropolitan District Railway Company was hereunto affixed in the presence of

W. E. MANDELICK
Secretary.

No.
164.



SIXTH SCHEDULE.

A.D. 1911

AN AGREEMENT made the twelfth day of April one thousand nine hundred and eleven between the MIDLAND RAILWAY COMPANY (hereinafter called "the Midland Company") of the one part and the METROPOLITAN DISTRICT RAILWAY COMPANY (hereinafter called "the District Company") of the other part.

Stamp.

Ten
Shillings.

SUPPLEMENTAL to an agreement dated the twenty-fifth day of April one thousand eight hundred and seventy-six made between the same parties and scheduled to and confirmed by the Midland Railway (Further Powers) Act 1877:

Whereas the District Company are in the present session of Parliament promoting the Metropolitan District Railway Bill whereby powers are sought to be conferred upon the District Company for the construction of (inter alia) Railway No. 2 which with certain other works in connection therewith will form an alteration in their existing down Hammersmith line of railway between West Kensington Station and Earl's Court Station which line the Midland Company are entitled to use for the purposes of passenger goods and mineral traffic together with facilities for access to construction and use of goods and coal depôts as provided under the said agreement of twenty-fifth April one thousand eight hundred and seventy-six:

And whereas the proposed alterations comprise—

- (A) An alteration and straightening of the lines of rail at West Kensington East Junction;
- (B) The construction of a new tunnel and works for and an alteration in the position of the said down Hammersmith line to enable the up Putney line of the District Company to be carried over the said down Hammersmith line;
- (C) A rearrangement of the junction west of Earl's Court Station;

and are shown upon the plan and section annexed hereto and are hereinafter referred to as "the said works":

Now it is hereby agreed between the parties hereto as follows:—

1. If the District Company construct the said works the same shall be carried out substantially in accordance with the plan and section annexed hereto.

2. The gradients of the said Railway No. 2 (down Hammersmith line) shall not be steeper than those shown on the section annexed hereto.

A.D. 1911.

3. As soon as the said works are completed and open for traffic the said Railway No. 2 which is coloured red on the said plan and the portion of line at the east end thereof which is coloured green on the said plan (together forming the altered portion of the down Hammersmith line) shall for all purposes of the said agreement of twenty-fifth April one thousand eight hundred and seventy-six be deemed to be part of the District Railway between Hammersmith and the stations of the District Company at High Street Kensington and South Kensington respectively as if constructed prior to the date of that agreement and the Midland Company shall in exercising their running powers run over and use the said altered portion of the said down Hammersmith line instead of the portion of the existing down Hammersmith line for which it is substituted.

4. The construction in tunnel of part of the altered portion of the said down Hammersmith line shall not in any way affect the Midland Company's right to continue to use steam locomotives for the conveyance of goods and mineral traffic between Studland Road Junction and their depôts at West Kensington and at High Street Kensington under the said agreement of twenty-fifth April one thousand eight hundred and seventy-six and under section 13 of the Metropolitan District Railway Act 1901.

5. Nothing herein contained shall authorise the District Company to acquire or take any property of the Midland Company except with the consent under their common seal of the Midland Company.

6. Either party hereto may apply to Parliament to give legislative force to this agreement and the other party shall support such application.

7. This agreement is made subject to such alterations as Parliament may think fit to make therein but in the event of either House of Parliament making any material alteration therein or in the works so proposed to be authorised by the said Bill of the District Company either party may withdraw the agreement.

In witness whereof the parties hereto have caused their respective common seals to be hereunto affixed the day and year first above written.

The common seal of the Midland Railway
Company was hereunto affixed in the
presence of

FARRER

Director of the Company
Abinger Hall
Dorking.



[1 & 2 GEO. 5.] *Midland Railway Act, 1911.*

[Ch. c.]

A.D. 1911.
—

The common seal of the Metropolitan District
Railway Company was hereunto affixed in
the presence of

W. E. MANDELICK
Secretary.



Printed by EYRE and SPOTTISWOODE, Ltd.,

FOR

ROWLAND BAILEY, Esq., C.B., M.V.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., FETTER LANE, E.C.; or
OLIVER AND BOYD, TWEEDDALE COURT, EDINBURGH; or
E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN.

THE NEW YORK PUBLIC LIBRARY

ASTOR LENOX TILDEN FOUNDATION

500 FIFTH AVENUE, NEW YORK, N. Y.

1900

1901

1902

1903

1904

1905

1906

1907

1908

1909

1910

1911

1912

1913

1914

1915

1916

1917

1918

1919

1920

1921

1922

1923

1924

1925

1926

1927

1928

1929

1930

1931

1932